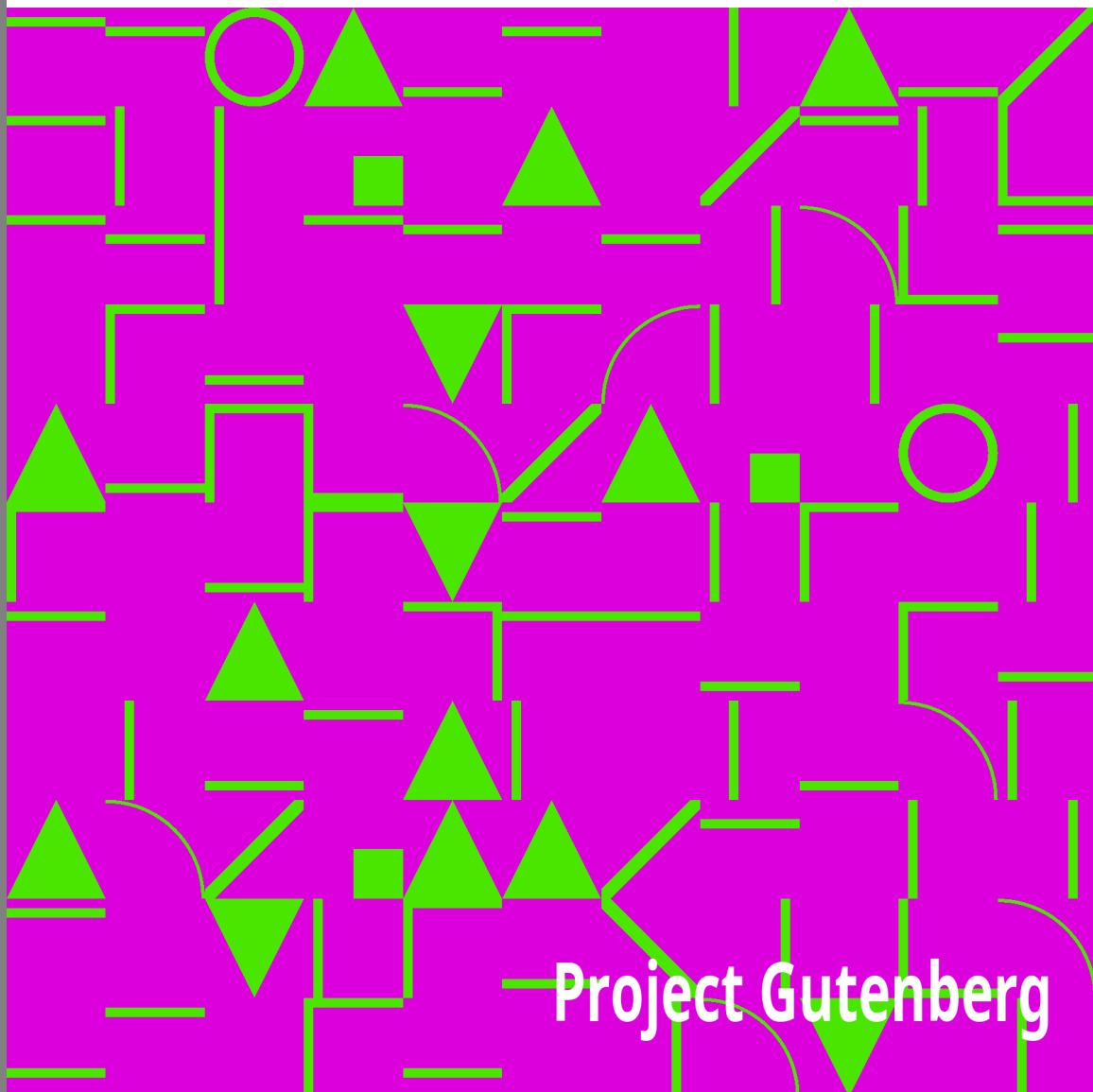


**Edward Barnett, a Neglected Child of South  
Carolina, Who Rose to Be a Peer of Great  
Britain,—and the Stormy Life of His**  
**Tobias Aconite**

**Project Gutenberg**

**Edward Barnett, a Neglected Child of South  
Carolina, Who Rose to Be a Peer of Great  
Britain,—and the Stormy Life of His**

**Tobias Aconite**



**Project Gutenberg**

**The Project Gutenberg eBook of Edward Barnett, a Neglected Child of South Carolina, Who Rose to Be a Peer of Great Britain,—and the Stormy Life of His Grandfather, Captain Williams**

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg License included with this eBook or online at [www.gutenberg.org](http://www.gutenberg.org). If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

Title: Edward Barnett, a Neglected Child of South Carolina, Who Rose to Be a Peer of Great Britain,—and the Stormy Life of His Grandfather, Captain Williams

Author: Tobias Aconite

Release date: June 23, 2005 [eBook #16112]

Most recently updated: December 11, 2020

Language: English

Other information and formats: [www.gutenberg.org/ebooks/16112](http://www.gutenberg.org/ebooks/16112)

Credits: E-text prepared by the Project Gutenberg Online Distributed Proofreading Team (<https://www.pgdp.net>) from page images generously made available by the Wright American Fiction Project, Indiana University Digital Library Program (<http://www.lettrs.indiana.edu/web/w/wright2/>)

\*\*\* START OF THE PROJECT GUTENBERG EBOOK EDWARD BARNETT, A NEGLECTED CHILD OF SOUTH CAROLINA, WHO ROSE TO BE A PEER OF GREAT BRITAIN,—AND THE STORMY LIFE OF HIS GRANDFATHER, CAPTAIN WILLIAMS \*\*\*

**E-text prepared by the Project Gutenberg Online Distributed Proofreading Team  
(<https://www.pgdp.net>)  
from page images generously made available by  
the Wright American Fiction Project, Indiana University Digital Library Program  
(<http://www.lettrs.indiana.edu/web/w/wright2/>)**

Note: Images of the original pages are available through the Wright American Fiction Project, Indiana University I Program. See <http://www.lettrs.indiana.edu/cgi/t/text/text-idx?sid=1a8b0a10bc4cb8d39c32ac704ab8c82f&c=wright2&view=reslist&type=simple&q1=Aconite%2C%20T>

---

**A NARRATIVE OF STARTLING INTEREST!!**

# **EDWARD BARNETT,**

A NEGLECTED CHILD OF SOUTH CAROLINA, WHO ROSE TO BE A PEER OF GREAT BRITAIN,—AND  
THE STORMY LIFE OF HIS GRANDFATHER, CAPTAIN WILLIAMS,

**OR**

**THE EARL'S VICTIMS:**

WITH AN ACCOUNT OF THE TERRIBLE END OF THE PROUD EARL DE MONTFORD, THE  
LAMENTABLE FATE OF THE VICTIM OF HIS PASSION,

**AND**

**THE SHADOW'S PUNISHMENT,**

**'TRUTH IS STRANGER THAN FICTION.'**

**BY TOBIAS ACONITE,  
THE MAYOR OF HOLE CUM CORNER.**

1855

[CHAPTER I.--THE STEWARD.](#)  
[CHAPTER II.--THE VILLAGE ALE-HOUSE.](#)  
[CHAPTER III.--THE AGENT.](#)  
[CHAPTER IV.--THE POOR MAN'S HOME.](#)  
[CHAPTER V.--THE CAPTURE.](#)  
[CHAPTER VI.--THE BEGINNING OF RETRIBUTION.](#)  
[CHAPTER VII.--THE SEAMAN'S STORY.](#)  
[CHAPTER VIII.--THE END OF TWO VICTIMS.](#)  
[CHAPTER IX.--THE AGENT'S PUNISHMENT.](#)  
[CHAPTER X.--RETRIBUTION.](#)  
[CHAPTER XI.--CONCLUSION.](#)  
[POSTSCRIPT.--THE AUTHOR TO THE READER.](#)

---

**THE EARL'S VICTIMS.**

---

## CHAPTER I.

### THE STEWARD.

Earl de Montford sat in a plainly furnished room in his stately mansion. Gorgeously decorated as were the other apartments of his princely residence, this apartment, with its plain business-look—its hard benches for such of the tenantry as came to him or his agent on business—its walls garnished with abstracts of the Game and Poor Law Enactments—its worn old chairs and heavy oak presses, the open doors of some of which disclosed bundles of old papers, parchments, etc.—this little room, the only one almost ever seen by any save the aristocracy and their followers—exercised and contained frequently more of human hope and fear than any other or the whole of the others of this sumptuous edifice. Here the toil-worn farmer came to pay his dues to the Lord of the Manor—here often too with beating heart and quivering lip, the old servant of the soil came to beg for time—time to enable him by hard pinching to make up his proportion of the sum spent in luxury by his landlord. Ah! reader! could those old walls reveal the sounds, the tales of human suffering, of heartless avarice, and callous indifference—of sneering assumption and hopeless woe, thy brain would be as fire, thy heart would sicken, and thy blood would boil, till rushing over every prudent thought, through grinding teeth and passion-paling lips would start, the one wild word, Revenge!

I have said the room was plainly furnished, but there was one exception—the chair in which the Earl sat. This was an old one, formerly the chair of state in which the old Barons his ancestors had presided at many a scene of wassail, with their retainers. It had been stuffed and new-covered to suit modern luxury, but the armorial bearings remained still carved in the wood of the high back, with the proud motto, "Nulli Secundi," second to none.

The Earl was not alone. His agent, a hard-featured man of business, sat at a desk, busy with papers, and a venerable old man, who had been his father's steward, stood a little behind his chair. There was a frown on the brow of the nobleman, as after a stern glance at the old man, he asked,

'Has that scoundrel been apprehended yet?'

'He has not, your lordship,' said the agent, slowly folding up a document; 'nor does it seem likely he will be. I have had the old haunts searched—I have, as you directed, promised large rewards for his apprehension, and threatened the tenants if they harbor him, but no clue to his hiding-place has yet been discovered. I am afraid he has left.'

'He has not,' interrupted the Earl. 'He is here, in this neighbourhood. I feel his hated presence. He must have harborers, Johnson. The parvenu millionaire—the cotton lord—harbors these ruffians by refusing to prosecute poachers. He preaches equal rights, forsooth! Break down his fences—send my deer to stray into his park—get some one to fire his barns—I will pay them. He has thwarted me, and he shall feel the agony of a long and fluctuating law-suit. Oh! for one day of my Norman ancestors! I would sweep such vermin from the earth. Waters!' said he, turning to the steward, 'beware! I have, from respect to my father's memory, somewhat restrained myself towards you. You have pleaded this man's cause. Say no more. He has threatened me—dared to use reproaches and threats to a peer of the realm—he shall be crushed as a noxious reptile!'

'My lord,' said the old man firmly, 'I was your father's steward—I was your grandfather's foster-brother and playmate—man and boy, I have been in the service of your family for over seventy years, and for the love of your house have I withstood you in wrong-doing—I beseech you again, let this man go. You well know he is an injured man. Add not more to that final account which you as well as I must one day render before God.'

'Palter such trash to coward fools!—I want none of your priestcraft,' returned the nobleman. 'Do I not know the reason of all this affected love for justice and mercy. Your grand-daughter was to have married this midnight robber—they were betrothed, or some such trash. Find him—doubtless *she* knows how—let them marry—such a son-in-law will be an honor to your family, and a comfort to your declining years.'

'Your insinuations and your sneers fall as harmless upon me as your threats,' said the steward with dignity. 'I am eighty-nine, and shall soon be beyond them: but when you brand with undeserved infamy one who never injured you—when you accuse my innocent grandchild of being privy to the concealment of a midnight robber, as you but

now called the unhappy man whom your ill-usage, whom your misdeeds drove from a happy home and honorable course of life, you commit an action, only equalled in its baseness, by its cowardice!

The Earl started up, purple with rage. For a moment, he seemed about to strike the aged form before him. He paused, however, and stood regarding him with clenched hands and furious look, and every evil passion glaring from his eyes. The steward moved not one inch, but confronted him in the majesty of venerable age.

The agent paused not for one moment in his task, but quietly labelling and tying up a pile of documents, placed it in its proper pigeon hole, and went on with methodical exactness to the next. They were a strange group. The man of business in his chair, pursuing his work as if no other were present, but observing all that took place nevertheless; the nobleman in the prime of glorious manhood, noble, as far as physical beauty could go; handsome, rich, accomplished, intellectual, but distorted as that face was now, in his rage, ugly, hideous in the extreme as he gazed upon the calm face slightly flushed with virtuous indignation, the spare form and silver locks of the aged man who dared to stand between him and the victims of his wrath.

Gradually the face of the nobleman became calmer, one by one the lines of passion disappeared and an expression of cold sarcasm took possession of his features; he threw himself into his chair and turned to the agent.

'Mr. Lambert, be pleased to pay particular attention to my orders, that is if your nerves are not too much discomposed by the exciting piece of eloquence Mr. Waters has just favored us with for my especial benefit. Gad! Waters, you'd do the heavy fathers finely on the stage. I'll write to Davidge for you, that last speech of yours was capital; couldn't you favor us with a finishing touch, we are all attention.' The agent placed his papers on the table, and wheeling his chair round, sat in imitation of his master as if in expectation of hearing some rich joke.

The single word 'God!' escaped the steward as he turned to leave the room; he gave one glance around as if for the last time looking on those familiar objects, cast a sorrowful glance at his master, and was about to quit, when his eye was arrested by a picture; it was that of frank and noble boy in the pride of youth and beauty, his face ruddy with exercise, his eye bright with intellect. It was a portrait of the Earl when a boy.

He turned towards them once more.

'My lord,' said he, 'I pass by your harsh speeches of me and mine. It may be I spoke too rudely myself. I will dwell no longer on the past, it is irrevocable; of my broken-hearted grandchild; of her young love, which was twined too strong around her heart, for one to perish without the other; of my own head grey in your service I will never more speak—but oh! for the love that bright boy once bore me, here on my knees, I entreat you, spare this man, who once was your playmate, spare him as you would be spared yourself; for let not your proud heart deceive you, not all your array of domestics, not all your barred doors, can save you from a violent death, or the guilt of murder, if you do not stop this unrighteous prosecution—for your own sake I entreat you stop, ere it be too late. Spurn this grey head if you will into the dust, but listen and spare.'

The Earl was unmoved as marble.

The old man left with bent head and slow step. 'Lambert, you will issue a notice, offering £500 to any one who captures Horace Hunter, dead or alive—also on pain of expulsion from the property, forbid any one harboring him; send for two London officers. These country bumpkins will never find him. Enquire for a dissolute fellow, known by the name of Curly Tom—pay him well: he perhaps may track him, in short, find this man and punishment to death shall follow.'

'It shall on you!' said a loud voice, apparently near them.

The Earl sprang to the window, and jumped out, the agent trembling remained, not a living being was in sight—the window opened upon a smooth lawn, there was not a chance of a person escaping notice, but no one was there; he summoned the domestics; they searched—no one was found, they had seen no one. Frantic with rage, yet with an ill-defined sensation of fear, the nobleman, re-entered the mansion, and dismissing every one, locked himself in an inner chamber.

The agent waited until his master was gone; then seated himself in the chair of state, and mused. 'Let me see! £500, too much to slip from my hands. I will find this Curly Tom myself—I think I know him—and if I can but keep him sober—and promise him a good carouse when Hunter's caught, he will entrap him—for these scoundrels all know how to find one another—£500, too much for any of these bumpkins constables, no, no, I must have it—there is



danger though—I must think over it—that voice was queer, where could it come from—could any one be in the presses?' After screwing up his courage to the task, he opened them fearfully one by one; there was nothing there but the old papers before mentioned. He stooped and stood leaning against the mantelpiece, over which was the Earl's picture—then puzzled, but determined on his course of action, he left the room and took his way to the village. He was not far from the house, when a servant called to him. 'You have a paper on your back, Mr. Lambert,' said he. He took his coat off; on the back, fastened with a pin, was a paper, with the single word, doomed, written upon it. The man of business was puzzled; he was not altogether a coward, but this was not a business proceeding; he said nothing, however, but methodically folded it up, placed it in his pocket book, and proceeded.

---

## CHAPTER II.

### THE VILLAGE ALE-HOUSE.

Railroads were unknown in the times in which our story occurred, and the village ale-house was still the rendezvous of the villagers of an evening; the parson still occasionally looked in and smoked his pipe with the lawyer, the exciseman, the sexton, and the parish-clerk; while the sturdy farmers, the smith, the butcher, and baker formed another circle; while the laborers and ploughmen, the butcher-boy and the tailor's apprentice lounged in to drink with greedy ears the news; to listen to the wise saws of the village politicians, and become in due time convinced that by some strange freak of fortune the only persons incompetent to rule the country were those in power at the time. Mrs. Alice Goodfellow, the landlady and proprietress of this village elysium, fair, fat, and forty, was a buxom widow, shrewd, good-humored and fond of pleasure, but careful withal and fond of admiration. She never, however, allowed any one of her admirers, to suppose himself more favored than the rest; neither did she suffer any of them to languish in despair. If she allowed the smith to hand her to her pew in church on Sunday, she, nevertheless, smiled sweetly on the baker; and if she took a drive in Farmer Dobson's pony-chaise for her health, yet, Farmer Thomas would sit for hours inside her bar; the truth was, the good widow was perfectly well aware that her snug little free-hold and thriving little trade were quite as great objects of attraction as her delectable self, and acting on the same principle as that old humbug 'Elizabeth,' insanely called 'the good Queen Bess,' viz: the balancing opposite interests, she drew custom to her house and grist to her mill, without troubling herself as to selection from her numerous admirers, which, besides displeasing the others, would place another in authority over that bar, which, for the last ten years, she had ruled monarch of all she surveyed. She had no relative, save one nephew, a wild, shy boy, strange and moody in his habits, passing whole days no one knew where—holding little or no communication with any of those who visited the tavern—none at all with the boys of the village, poring over some book of wild adventure when at home, ranging the woods with an old duck gun on his shoulders, or laying down beneath some shady tree poring over the same wild legends when abroad. His aunt could make nothing of him, and nobody else took the trouble. The curate, indeed, tried to teach him once or twice, but he disconcerted the old man so by discharging his musket at an old wig, hanging by the wall in the midst of a lecture on the propriety of going to school, that he gave him up as hopeless.

The tap-room presented its usual evening appearance when the agent entered. The curate and lawyer were deep in a discussion on the beauties of the new poor-law; the farmers grumbling at the weather; the landlady quietly seated behind the bar, while the bar-maid, a smart, coquettish girl of nineteen, carried the ale and brandy around to the thirsty customers, and all the usual concomitants of a scene then common, but, what we must now call of the olden time, though half a century has scarce passed away since it occurred. The agent was a great man there, few liked him—in fact, all hated him, for though generally a just man, he was entirely a man of business; punctuality was his deity—there was no excuse with him for not meeting rent or bills when due; he did not overcharge or wrong anyone, but he must have his bond, like Shylock, without his ferocity. If money was due it must be paid; sickness, bad crops, death itself was nothing to him; if not, he proceeded *legally*; oh, what a world of anguish! what a number of crimes, crying aloud to Heaven for justice and retribution, are committed under the cloak of Man's legality. The type was forged in Hell that stamped the letter of the law.

The agent, after exchanging courtesies, lip-deep, with the principal farmers, the curate, etc., walked up to the bar and entered into conversation with Mrs. Ally, as she was usually called.

'His lordship has desired me, Mrs. Ally, to put this notice up in a conspicuous place in your tavern, perhaps you will oblige me by placing it in a proper position.' So saying, he handed her the paper containing the reward, etc., offered for the apprehension of Hunter.

'You may stick it up yourself on the parish pump, Mr. Lambert, if you like, but my bar is no station-house or cage; give it to the town crier,' said the dame bristling, for she hated the agent, and feared him not.

'Dang my buttons!' said a burly farmer, 'Mrs. Ally ha the agent dumbfounded—what be the matter?'

'It is simply this, good friends,' said the agent: 'his lordship has offered a reward of £500;—£500,' said the agent, slowly repeating the sum, 'for the apprehension of the notorious poacher, Horace Hunter, who has threatened his

life, and will visit with his gravest displeasure any one who harbors him, or in any way countenances him; if a tenant he shall be discharged; and Mrs. Ally here, refuses to let me place the notice in her bar, thereby showing great disregard for my lord's wishes, to say the least.'

The farmers mostly shrunk back on this speech; the name of a lord, and that lord their landlord, appalled them. They knew the bitter wrong he had heaped upon Hunter's devoted head; they well could sympathize with him; they had known him a gay and thriving farmer, their lord's especial favorite—fatal favor—the companionship of the tiger and the deer. The beauty of Hunter's sister had struck the libidinous eye of the aristocratic villain—need I say more? ruin and desolation followed—no one knew what had become of her. The brother had been kidnapped by a press-gang, but of course the Earl knew nothing of that; he was now, however, supposed to be lurking in the neighborhood. The Earl had received a letter in which the brother's heart had been poured out in bitterness; he had injured, therefore he could not forgive. Not so, however, Mrs. Alice; she did not fear the lord one jot, and folks did say, she knew more about him than he would like told; be that as it may, she loudly protested against its being placed there at all; and was still indignantly haranguing; now crying shame upon his lordship; now bewailing poor Ellen, who had been a great favorite of hers, when her eccentric nephew entered; he looked dusty and fatigued, but there was a strange smile upon his lips as he looked at the agent. Without saying a word he walked straight up to the agent, and taking the paper from his hand procured a hammer and some tacks and nailed it up in the most conspicuous place in the bar, displacing some of his aunt's ornaments in so doing; then drinking a mug of ale, he threw himself along a bench and was or seemed to be sound asleep.

'Dash ma wig,' said the farmer, who had before spoken, 'that dangs all, the boy be daft and Mrs. Ally doant say nuthen—he be queer for sartain.'

Mrs. Ally said not a word, but gazed on her nephew with mute astonishment; she did not, however, attempt to remove the obnoxious paper. The agent having in this unexpected manner gained his point, called for wine and sat down with the curate, lawyer, etc. He had yet another object—to find Curly Tom, no easy matter, that worthy being by no means a welcome guest there; that he did come there sometimes, however, Lambert knew, for as long as no warrant was out against him, however bad his character, he could not be turned away from the inn when he paid his shot; he did not like openly to ask for such a character, but sat down trusting that when the ale made the farmers loquacious he should gain some clue to his whereabouts. Fortune seemed destined to be his friend in more than one way that evening. The sound of a pistol shot was heard in the road leading towards the seaport, which was some ten miles distant; and a few moments after, a burly seafaring man entered the tap-room, dragging after him, in his powerful grasp, a ruffianly ill-looking countryman; no other indeed than the man of all others Lambert wished most to see, viz: Curly Tom.

'Cast your anchor there,' said the seaman, 'and if you attempt to slip moorings, afore you've been over-hauled by the skipper, split my topsails but I'll bring you up all standing with this barking iron,' pressing the muzzle of a pistol to the fellow's forehead.

'Put up your pistol,' said the fellow sullenly. 'I beant going to run; you've broke my head and dinged all the wind oot of ma body.'

'What is the matter, my good man?' said Mr. Lambert, coming forward. 'I am a magistrate, and can take your deposition.'

'Matter!' said the sailor, 'piracy is the matter. I was making for this ere port, charged with despatches from my commanding officer, when this ere shark ranges alongside and pops his barking iron into my face, and wants me to break cargo and hand over to him, but I brought my harpoon handle to bear on his figure head and he capsized, and his barker got foul of his rigging, then I roused him up and brought him along to this port.'

'Highway robbery and attempt at murder,' said the agent. 'Simpkins, you are constable, take this man in charge, while I make out his committal. Stay!' he added, 'the cage is very insecure, and this is no trifling case. You had better take him up to the castle, my lord will examine him in the morning, and there is a strong room there; meantime, Mrs. Ally will perhaps see to his wound, it looks an ugly one.'

The kind hearted landlady readily undertook this latter office, even for so repulsive a being; his head had indeed received a terrific blow, a fur cap had somewhat deadened the force or he must have been killed on the spot; she bound his head up, and in charge of the constable and two stout laborers he was marched up to the castle. The agent after warning the mariner to attend in the morning at his examination, going with them, well pleased, not

only to have found the man he sought, but also to have him in such a situation that he could only choose between doing his bidding or the gallows. The boy, had never stirred from his sleep during this scene. The company at the ale house also broke up, and each wended his way home, where, no doubt, each in his own way, regaled his family with the marvels of the evening, and the seaman alone remained, eating his supper as coolly as though nothing had happened, a combat of life and death seeming to him a thing too common to excite any emotion in his breast. Had it been daylight it is not likely he would have been attacked by one man; few that gazed upon his square muscular form, his brawny chest and strong hard hands, would have liked to cope with him in personal conflict, though his iron grey beard told that more than fifty years of storm had rolled over his head. His face had been handsome, scarred with storm and conflict, it still bore the impress of manly beauty, and there was a look of settled determination, upon it, that told was indeed,

'In close fight a warrior grim,'

and traces of fierce passion also showed him to be one whom no one would like for an enemy. His dress was finer than an ordinary seaman's, and though perfectly nautical, was free from any stain of tar or pitch, generally considered absolutely necessary in a sailor's attire. The boy gazed intently on him as he took his meal, closing his eyes however whenever the sailor looked at him, and preserving the appearance of slumber.

Mrs. Ally waited with becoming patience while her guest ate his fill and then approaching him with a brimming tumbler of punch said, 'Drink to the memory of old times, Walter.'

'You know me then!' said he, 'strange that but one eye alone of those who knew me in my boyhood should recognize me, but sea and storm do much to alter a man, human passion does more.' (He spoke now without any of the sea jargon that had made his account of the encounter with Curly Tom almost unintelligible to the farmers); 'but,' he added, 'you had better send this lad to bed.'

'You need not,' said the boy, rising as he spoke, 'I remembered you instantly. I will not betray you if you wish to remain unknown.'

'You may safely trust him,' said his aunt, 'he never breaks his word.'

'A good sign that,' said the seaman, 'and a bold boy I warrant, he is well grown too for his years, and like—'

'Like who?' asked aunt and nephew in one breath.

'Like one I never wish to speak of,' was the answer, 'let be, let be, I have much to ask you; first of my father, does he live?'

'He does, bowed down by age and now by sorrow, Walter. When you and I were younger—years ago—when my sister, who is now an angel in heaven, I hope, married you, I never thought the day would come when my lips should be the ones to tell you of the desolation of your child.'

Walter recoiled, and rising from his seat grasped the back of the chair he had been seated on with such a nervous gripe that the strong oak rail broke in two with the pressure, and his heaving chest and quivering lip told the fierce emotions that were struggling for utterance.—The landlady understood his look.

'Do not fear, Walter—your child is as pure as an angel. It is the desolation of her heart I speak of—not the pollution. It is the blight that has fallen upon her young love—upon a woman's first and holiest impressions—a virtuous love for a deserving object. Are you calm enough to hear the tale?'

'I am—proceed.'

'My tale will not be a long one, but sad—sad for more than one victim has and will fall yet to the fell passions of him, who rules this neighborhood with a rod of iron. You remember Geoffry Hunter, of the Toll gate farm?'

'Well; he and I were schoolmates.'

'He died some few years after you went on that voyage from which no one ever expected to see you return—I for one. Though remembering your daring courage and hardihood, I did not credit the tale that was brought here that you had perished in the woods attempting to escape. I felt confident you would one day return—as you did ten years ago, and brought this boy with you. Geoffry Hunter left two children. You knew them—Horace and Ellen.

Poor Ellen! victim of a titled villain!' and the good woman paused, and tears filled her eyes. It was some moments ere she could proceed. 'Horace grew up a fine young-man. As a boy he was a playmate of our proud master; and when Ellen returned from Canterbury, where she had been educated by an aunt, she was the pride of the village, the joy of her widowed mother's heart, and the apple of her brother's eye. It was a beautiful thing to see, Walter, the strong love of those two—the exultant pride of the brother in his sister's loveliness—in her accomplishments, for she knew many things our country folks were unacquainted with. The deep affection of the sister—oh, it was a happy and a handsome picture, that mother, sister and brother. She took more pleasure in the society of your daughter than in any other of the village girls, and they were much together. Ellen taught her what she had learned, and thus it came about that her brother first noticed and finally loved her. And she loved him in return. A handsomer or more fitting pair never trod the sod together. You would have approved the match. Your father gave his consent—he had long mourned you as dead—and they were to have been married when she became 20 years of age. It yet wanted two years of this time when our lord returned from abroad. He soon visited the house of his old playfellow, and was struck with the beauty of Ellen Hunter—but he too well knew the character of Horace Hunter to openly show it. The first step he took was to dismiss your father from the stewardship, under pretence of his being too old, and settling a pension on him. He did not wish the good old man near him—it was a living reproach on his bad deeds.'

'On the infamous practices of his race,' said the seaman sternly; 'bad father and bad son—but proceed.'

'He installed this man Lambert in your father's place—a cold, unfeeling man—a money-worshiper, and suspected of being only too willing an instrument in furthering his master's infamous designs. Lambert sedulously cultivated an intimacy with the Hunters—condoled with the mother, ingratiated himself with the young man, and affected unbounded friendship. Ellen, however, with the true instinct of a pure and innocent girl, shrank from his companionship; innocence will ever shrink with innate consciousness from baseness. He persuaded Hunter to rent a farm in addition to his own, and lent him money to speculate largely in breeding fancy sheep. The speculation failed—the agent pressed for payment. His master came forward and paid the amount. Thus he appeared as a benefactor, and Ellen's gratitude soon ripened into love; but her brother was in the way. He went to Erith to make some purchases for his mother and sister, and was kidnapped by a press-gang. Lambert had been there a few days before.'

'Ah, I understand,' said the seaman—'too plain. Fire them—what right have they to seize a free man as if he were a negro slave?'

'It's a shame,' said Mrs. Ally, 'but good King George—'

'Imbecile old ass,' said the mariner—'go on with your story.'

'The mother grieved for her son's absence—he wrote from the tender ship asking for his clothes, and to buy off his discharge. She applied to the Earl. He deceived her—gave her hope—promised to write to the Admiralty—was sorry, but the necessities of the war were such, substitutes were not allowed, and a discharge could not be granted. Within a year the mother died, and Ellen was left alone. Beautiful, helpless, with no one to protect her, was it a wonder she fell a victim to the vile plot laid for her? Her seducer wearied of her after two years, and offered to settle a pension upon her and wed her to his base instrument Lambert. She spurned the offer, and left the cottage where he had established her in splendid infamy. None knew whither she went, and no tidings have since been heard of her.'

The seaman was pacing the floor in stern and gloomy silence. He paused. 'And him?—what became of him?'

'He came back three years after,' said the landlady, 'in sailor's garb, but without a seaman's manner. He had learned dissipation, and was gloomy and fierce. He had heard of his sister's shame, and he swore a terrible revenge. The Earl was in London at the time, but had he been here, Horace would have attempted nothing then. "I will not strike him now," said he—"no! that were a poor revenge. I will tame his pride first—then destroy him. Mine shall be no vulgar vengeance."—He however wrote a passionate letter to the Earl demanding his acknowledgment of his sister as his lawful wife, and threatening terrible vengeance. This was idle, but I suppose it merely done to cover deeper designs. He returned to sea—was absent two more years, but re-appeared here some three months ago, since when he has been frequently seen about the neighborhood, and is supposed to subsist by poaching. Curly Tom, the ruffian you captured last night, has been much with him. He has again written to the Earl something which has made him furious—so your father told me, who had been there, the good old man, trying to make him forego his pursuit of poor Horace. There will be something terrible, I am sure. God help us, and avert it.'

'Say rather, let his righteous judgments fall upon that base man and his infamous house,' said the mariner sternly. 'You need tell me no more. I can picture my sweet child, pining, grieving over the lost character of him she loved—two families of victims. But shall not vengeance take its course? It shall—terrible and full. But a short space of time shall elapse ere he shall be stripped of rank and title, and then—'

'Walter, you rave.'

'I speak in earnest. I never threaten in vain. But I must act now. I must find Hunter. How to do that—'

'I will take you to him,' said the boy, 'to-morrow evening.'

'Good. I must have some talk with you, but now I must rest. To-morrow night I shall have none.'

So saying, the burly seaman, preceded by the landlady, retired to his chamber. The house was soon in quiet, but the boy sat long by the decaying embers of the fire, musing over the words "he shall be stripped of his rank and titles"—then took from his vest a small gold locket. It contained a lock of hair—two persons' hair entwined together, dark and fair—but it bore the impress of a coronet, and the proud motto, "Nulli Secundi."

---

## CHAPTER III.

### THE AGENT.

Great was the concourse that thronged the room to which we first introduced our reader, on the morning after the events we have detailed—the weather-beaten mariner was there to state his charge—the parish clerk with more than usual importance was ready to act as secretary—the lawyer, the curate, all prepared to play their part in the approaching drama of real life. The Earl in his magisterial seat—bitter mockery of justice—prepared to sit in judgment on a wretch not half so guilty as himself. But he belonged to a privileged class—the other was one of the "lower orders."

The entrance of Mr. Simpkins the constable, with rueful countenance and faltering voice, with the intelligence that the prisoner had escaped, created a great sensation. No one was more indignant than the Earl—though how far this was real may be judged when we inform the reader that Lambert had held a long conversation with the prisoner, Simpkins and his two assistants being first treated to a powerful opiate in a mug of ale. This conversation had resulted in Curly Tom's departing—a pensioned tool, a hired slave, to do the will, even to murder, of his titled employer—he had no choice save the gallows. The constable was severely reprimanded, a reward offered for the apprehension of the fugitive—the seaman's deposition taken in due form, and all the forms of law gone through with as if it had indeed been a court of justice. The seaman treated the affair lightly, laughed and joked with the farmers, and the crowd began to disperse, when a burst of musical laughter, bitter mocking in its tones, was heard in the apartment. It came from no one there. All stood aghast. Many a stout-hearted countryman who would have faced a cannon without shrinking, trembled and turned pale. The women shrieked; the nobleman started up.

'Let no one quit the apartment,' said he. 'Search the walls—there must be some secret panel there.' It was done, but not a trace, not a knob was visible; all sounded hard and solid.

'You have a shipmate with you, my lord,' said the mariner, 'whose name is not upon the ship's books. I have heard of such things at sea.'

'And what might your wisdom suppose them to be?' said the Earl, with a sneer.

'It is hard for man to tell,' said the seaman, who had not been the slightest discomposed by the voice. 'He who made the ocean and the dry land alone knows; but a conscience void of offence is the sheet anchor for man to rely upon in the voyage of life. I never knew such a thing to happen save to a wicked man.'

'Ha,' said the Earl sarcastically, 'a moralizing tar-bucket. Truly, this age is prolific in wonders. The march of intellect is abroad with a vengeance. But since these good people have been disappointed of their expected morning's amusement, perhaps you will favor them and myself with this yarn, I think they call it; and Lambert, order some ale to be served round, and let them bring a cup of brandy for our maritime friend here; he must wet his whistle, I suppose, or he will never be able to spin a yarn in true, orthodox, sailor fashion. Sit down, friend, and begin.'

'I drink when I am dry, my lord,' said the seaman, 'and I prefer standing to casting anchor here.'

'Have it your own way, then, but proceed, we are all attention.'

'I had shipped as mate on board a vessel bound from Valparaiso to Virginia, some years ago, when, getting short of provisions, we put into Lima, on the coast of Peru. Here we took on as passenger, an English gentleman in bad health, who was said to be enormously rich, but who bore a very bad character, people said he had murdered his brother's child, or had him put out of the way, to obtain his inheritance, but he was a rich man and justice was quiet. He had noble blood in his veins, and had been sent out by government as ambassador, or something of that sort. One of our crew came from his native village, and he told me these particulars.'

A singular expression came over the Earl's features for a moment, and the same low, mocking laugh was again heard, the listeners shuddered and drew closer together: the mariner proceeded.

'We had a rough passage, but when we neared Cape Horn, of all the gales that ever blew in five-and-forty years that I have been at sea, I never saw one like that. One night when the storm was at its utmost, when the lightning, blue and vivid, seemed to surround us with an atmosphere of flame, he rushed upon deck, pale and trembling, declaring he could not stay below, for there was a woman and child there, mocking him and dancing in the lightning's flash.' A groan of horror burst from the listeners. The Earl's cheek flushed for a moment, then turned pale, but he was motionless and passionless in seeming. The seaman glanced at the Earl from under his shaggy eyebrows, and proceeded.

'The sailors spoke together in angry whispers, some of them were for throwing him overboard, and I had hard work to persuade them to leave him to his Maker and his conscience; soon, however, we all heard the wailing cry of a child, then stifling sobs, sounds mingled with the storm like a woman's voice in agony of supplication, bitter, mocking laughter. I could restrain the men no longer, "we will free our craft from this Jonah," said they, "the storm is sent for him." But the vengeance of the Almighty was swifter than theirs, he had climbed the rigging—the stoutest seaman that ever handled rope could not have passed the futtoch shrouds in such a storm, yet he reached the top-mast cross-trees, clinging to the top-gallant mast he stood, and in the lightning we had seen his face, ghastly with terror. There was a vivid flash—it seemed to wrap the mast in one blue sheet of flame, while all around was dark, we saw it then, a female with a child in her arms, floating, as it seemed, upon the wind, now drifting towards him, now whirled upon the blast to a distance. A tremendous sea struck us upon the beam at this moment, and every mast went by the board. The gale abated soon, and we got jury-masts up, and put back to Lima, but of all that ship's crew, no man was hurt by the storm or the spirit, save he whose deeds had been evil;—and that is why, my lord, I say I fear not these sounds, for a good conscience is the best sheet-anchor.'

'A truly edifying tale,' said the Earl sneering, 'you must be Chaplain to the fleet, doubtless. The bad boy got whipped and the good boys went scot free, just as it should be. And now, good folks, you have had your amusement, and had best seek your homes, and Old Boreas here may go to his ship or the Devil. I care not.' With this parting benediction the Earl quitted the apartment, and the crowd soon dispersed. The agent remained, and a few of the tenantry who had business with him. The mariner with a grave, quiet look, remained seated on one of the benches. There was a slight bustle at the door, as of repelling some intruder, who, however, succeeded in gaining an entrance, and a man whose garments bespoke extreme poverty, entered and approached the man of business.

Mr. Lambert lifted up his head and looked coldly at him. 'What is it you want now?' he asked.

'If you please—' began the man.

'Oh! It's all of no use, unless you have brought the money. My Lord can't wait any longer, and I have a warrant out now.'

'But I have the money,' said the man, and he laid five one pound notes on the table.

'This is not sufficient,' said Lambert, 'the costs of the summons, warrant of distress, etc., amount to £14 more.'

'My God!' said he, 'what am I to do?'

'I can take this on account, and stop further proceedings, if you can procure security to pay the remainder within a month.'

'I cannot. Great God! have you no mercy? I have not tasted food these three days, and I am weak with fever. I cannot work yet; wait till I am better.'

This man's attenuated form, his bony hands and cadaverous cheeks—eyes staring with hunger, told a tale too common, alas, of fearful suffering; but no marble was colder than the agent.

'I am not your physician, Mr. Johnson, and therefore cannot say any thing about your fitness for work. One thing I have to say, that is, you cannot sit rent free in my lord's cottage; the money must be paid or out you pack. I have an attachment on your tools, so you cannot remove them. You have had the usual legal notice, and my offer just now was liberal—very liberal.'

'And my children—'



'There are institutions provided by the laws, Mr. Johnson, for the reception of paupers. But we are wasting time. Do you accept my proposition or not?'

'I cannot do it; give me time.'

'Too much has been already wasted. Take back your money. You doubtless can obtain more in the same manner you did this. It looks very suspicious, I must say.'

'And this is called a Christian land!' said the poor fellow, holding his wasted hands up to heaven. 'O God, that these things should be! The earth is covered with food for sustaining life, and hundreds, aye, thousands, like myself, are perishing at home. Oh, where is Christian charity?'

'Charity begins at home,' said the seaman, 'and seldom casts anchor in any other port. If you'll take my advice, you will stow your cargo and make sail, and hark ye—' He whispered a word in the man's ear; the other clasped his hands together, and with a tear in his eye, left the apartment.

'Woe! woe! doomed!' cried the mysterious voice.

Lambert shook like a leaf—the seaman seemed to enjoy his terror.

'How much does Mr. Johnson owe?' said he,

'£5 rent, and £14 costs and taxes.'

'Write a receipt.'

The mariner paid the sum, and asked how he came so low.

'The usual story, captain.'

'Williams is my name.'

'The usual story, Captain Williams—sick wife, large family, broke a leg, wife died, behind-hand in his rent, steady man, but not punctual in paying his bills.'

'Why how the thunder could he? Couldn't his lordship wait till the poor fellow was a little recovered?'

'Business, captain, must be conducted in a business-like manner.'

'You thought otherwise once.'

'When was that, pray?'

'When the father of that man, whom your relentless cruelty pursues with such vindictive malice, took you, a friendless boy, fed and clothed you, educated you along with his own son—the very man whose misery you insult—when his father saved *you* from the "charitable institution" you would send his children to, and finally paid the fee for articling you to the attorney at Canterbury, where you learned your present devotion to business.'

The agent stared in speechless astonishment—the low musical laugh again rang through the room.

'Listen!' said the mariner. 'The creatures of the air, the beings of another world denounce you; the victims of your lust for gold, though buried fathoms deep in the grave, still find a voice to chill the marrow in your bones: the dead shall rise from their graves and confront you—the hidden perfidy of years shall be disclosed, base tool of a baser master—all your machinations against the wronged and the humble shall fail, and recoil upon yourselves. Repent ere it will be too late; you will never more be warned by me.'

So saying, the stout seaman left the astonished agent and wended his way towards the cottage of the poor man Johnson, whither we shall precede him. It is needless to remind the reader that the way was perfectly familiar to him.

Dark are the shadows that cross the poor man's path, and few and far between are the glimpses of hope that come to lighten them. The Eternal in his wisdom has ordained that such should be—but Oh! woe! woe! ten thousand times ten thousand woes, does he deserve who oppresses where he should relieve, who becomes the destroyer

where he should have been the comforter; and yet there exist ten thousand such who thrive and roll in luxury, while human hearts are bursting in their agony.

---

## CHAPTER IV.

### THE POOR MAN'S HOME.

Standing a little aloof from the other cottages, as if conscious of its poor appearance, was a shed; it could hardly be called any thing else, for it appeared originally to have been nothing more than an out-house belonging to another building, and such in fact it had been. The roof was decayed in many places, and covered partly with rank moss. It was situated in a hollow, and the marshy soil around bore evident proof that it was subject to be overflowed in rainy weather. Four or five squalid, ragged children, with pinched features and thin limbs, sat huddled in a heap on the muddy ground, watching the road with anxious eyes—eyes so bright with hunger that they seemed like those of so many rats. The youngest—it was not two years old, cried—the elder beat it. Start not, reader, it is human nature. The little creature hid her wizen face in her withered little hands and sobbed. A man rode by just then. It was the agent on his way to the castle, for this was the morning of Curly Tom's escape. Instinctively the children drew closer together and shuddered. They did not know why, but they knew their father feared him. He passed on, and the little faces seemed to brighten for a moment; the eldest was but seven. Long ere the dawn their father had started for the market town, some five miles off, in the vain hope that an old friend there would help him. Ah, poor children! there they sat from the first ray of daylight, and the bright sun was now glittering high above their heads, shining upon their desolation and upon the castle turrets, wherein dwelt in luxury their oppressor. The events we have described as taking place at the castle were still in progress, when a female was seen slowly coming along the road, bearing a basket on her arm that seemed too heavy for her.

'That is Mary Walters,' said the eldest, 'and she will give us something to eat—I am sure she will. Jenny, dear, don't cry,' and the urchin wiped the little face she had struck before, and tenderly took her in her own spare little arms. The child was not much weight. Gentle Mary Waters! who that gazed upon thy placid face, as thou earnest on thine errand of mercy—who that saw thee as thou ministered to the necessities of those poor desolate children, would not have loved thee—who that had seen thee in the first blush of thy beauty, when thy foot was as elastic as the fawn's, and thy countenance radiant with joy and life's young morning hope—who, who could dream that there existed one who had seen all this, who had known the tie that bound thee to earth and its promised happiness, the innocent love that abounded in thy heart—yet ruthlessly snapped that tie asunder, and buried the love nought could eradicate, deep in her bosom—a shattered wreck amid the memories of the past. Gentle Mary Walters! alas for thy experience!

What avails it to describe her—perished as we know that fair form to be, withered in its bloom. Yet she was handsome. It was not in any particular feature; it was in the whole expression of her face and form. Her auburn hair, in its plain quiet braid—her neat and scrupulously plain attire, her mild blue eye, the air of placid resignation about her presence, seemed so lovely, for she bore no outward token of the grief within; she had never wailed or cried her sorrow away; but though her gay smile had passed away forever, she had not become the gloomy misanthrope or the fretful querulous invalid. She had complained to no one. Her old grandfather knew her griefs, but he also knew that it was a subject he could not offer her consolation upon. To aid the suffering as far as her slender means would allow, to tend the couch of sickness, to cheer the desponding heart in its hour of darkness, these were the occupations with which she strove, not to forget her sorrows—that could never be—but to afford an outlet for that love for her fellow creatures which no selfish grief could lessen. And she could smile and speak in cheering tones to others in their hour of woe, shedding over their darkened paths the light of hope, while deep in the fountains of her own heart that sweet flame was extinguished forever on earth, and dust and ashes alone remained.

But over that lovely countenance, so serene and beautiful, the shadow of death had already fallen;—that dread disease that beautifies ere it kills its victims, had placed its fell stamp upon her. Daily her figure became thinner and sharper, her breath grew shorter and a hacking cough commenced, while a hectic flush sometimes came over her pallid cheek—but too plainly warning those who looked upon her, that consumption had marked her for its victim.

Hastily giving the children some victuals she had brought for them, she entered the hovel, furniture there was none;—a chest of tools and a heap of straw was all its contents. The grate had evidently been unconscious of a fire

for weeks past,—but it was summer. She shuddered as she looked around. This was the home for which the proud lord of those domains exacted a rent of £10 per year. She was not one, however, to give way to idle speculation when there was good to be done: she opened the shutters, swept the floor, and threw a quilt she had brought with her over the heap of straw, then made the children wash themselves, and proceeded to dress them in some hastily made clothes, which her basket contained. Then taking the little one in her lap, and making the others lay down on the bed—for hunger had awoken them far before they had their needful rest, she sat down upon the stool-chest lulling the child to sleep, and patiently awaiting the arrival of the father. A step approached, it was not the man, however, but the landlady's wayward nephew:—he, too, carried a basket, and seemed pleased, but not at all surprised at seeing Mary.

'I knew I should find you here,' said he, sitting beside her, (he was much more companionable with her than with any other person,) 'I knew as soon as you came back and heard how badly off these poor creatures were, you would come to relieve them. It's like you, Mary, you seem the only Angel amongst a race of fiends.'

'It is our duty to help the poor and needy, Edward: I only grieve I was absent from the village. Things ought never to have come to this pass. Why did not the neighbors help them?'

'Why, Mary, in the first place you know poor Johnson was no favorite of theirs—he was better educated than any of them, you know he was not bred a carpenter, but intended for a minister,—so he has often told me himself, for he has been my schoolmaster, it's because we are both lonely, I suppose, that he talked to me, but he kept aloof from the others, and they all said pride would have a fall, and so would not come near him in his trouble. My aunt and he had quarrelled, but she would gladly help him for all that if he would only accept of it, but his pride sticks in the way. I knew he was away, or I would not have brought this with me; however, you can say you brought it.'

'I can never tell an untruth, Edward, but you can leave it, perhaps he will ask no questions.'

'I'm not quite sure of that, Mary; but I've played him one trick this morning for his own good, and if you won't help me to play another, e'en let it alone—all have their weak side,—that abstract idea of truth you worship, Mary, is yours.'

'And do you not love the truth too, Edward?'

'I never tell a wilful lie, Mary, you know. I'd scorn it, and I never break my word,—but still, look at truth's reward,—here! the home of an honest man, and there!' he pointed towards the castle. 'Ah! forgive me, Mary, stupid dolt, that I am.'

'You have not hurt me, Edward, but must never think honesty and truth has no reward even on earth; a good conscience is a blessing none can take away from us, and there is hope in Heaven.'

'There had need be, Mary,—I won't contradict you, though I don't know much about it. The Bible says so, and I suppose it's true: but poor Johnson, I'm thinking will be more glad of the five pounds I tricked him into accepting this morning than a dozen good consciences.'

'How was that done, Edward?'

'Why, my aunt wanted to help him, but did not know how,—but I was up at grey dawn this morning, and saw him pass in the direction of Elverton. I knew he was gone on a fool's errand to appeal to an old friend; he had, it seems, bowed his proud heart to that. True, he had saved this man's life: more, he had saved him from dishonor and disgrace, but I felt none the less certain he would get no aid there. So I took £5 from Aunt Ally's cash-box, and putting them inside a blank letter, I directed it in a feigned hand, only adding the words, "from one who sympathises with learning and ability in distress," for he's proud of his learning, and rode like mad over the hills to get there before him; there I watched for him, and got a footmail to give him the letter, and came back as fast as I went.'

'Now, God bless you for it, Edward, you are a wild boy, but you have a good heart.'

'Boy! Man, you mean, Mary. I'm eighteen this summer.'

'I should not have thought you so old.'

'Aye, aye, you judge like the rest, because my carcase is not as big as Lumping Dick's the butcher boy's, and because you have known me as a child when you were a grown woman, you think I am to remain a child always.' And he petulantly shook back the masses of long dark hair that shadowed his wild but handsome countenance.

At this moment Johnson entered the room. His step was feeble and slow, but his countenance no longer bore the look of deep dejection that had in the morning characterized it. His eye brightened still more when he saw Mary.

'Now God bless you, Miss Waters, for thinking of my poor lambs,' said he. 'I scarcely dared to hope for them. I have brought food for them—see!' he added. 'I little dreamed anyone would have been here before me.'

'Sit down,' said Mary, rising; 'you are fatigued and weak. I must go now, as my grandfather will need me, but we will send you something to make your house more comfortable.'

'I shall not require it, Miss Mary: I have nearly five pounds here.'

'Why, how is that?'

'It was handed me this morning by a strange footman in Elverton, after the door was shut in my face of the only man I ever tamed my spirit to ask aid from: yes, the cowardly hypocrite that dared not deny me to my face, sent his lacquy to tell me he was unwell, and could not be disturbed by beggars. May the curse—'

'Stay!' said Mary, 'curse him not, leave his punishment to his Maker; but did not the agent take the five pounds for the rent?'

'No; he said there was a warrant and costs of suit that made it fourteen pounds more, and was going to send the bailiffs to turn me out this very evening; but a strange old seaman came forward and paid the amount. I should have been here sooner, but I went round to the village shop to buy food for the little ones.'

'You must allow me to have my way, Johnson,' said Mary. 'Sit down now and eat; then rest. You will need the little money you have, and more too, to recruit your health, for you must not dream of working again until you are strong. I will send what is necessary, and some one to mind the children; Edward, will you walk home with me?' and before the man could reply, not giving him time to utter a word of thanks, she took the arm of the youth and quitted the cottage. The man knelt down on the floor, and famishing as he was, prayed for a blessing on her head ere he touched the food that was there. Another had been a witness to this interview. Looking through the casement was the visage of the mariner, no longer stern, but moved with unutterable emotion, and tears, yes, tears trickling down his weather-beaten cheeks. This soon ceased, however, and a frown dark and terrible passed over his face; his powerful frame quivered, then settled down into one look of deep, determined, implacable resolve. He entered the hut, and laying the agent's receipt upon the chest, quitted without a word.

---

## CHAPTER V.

### THE CAPTURE.

The sun had set about an hour on the evening of the same day, when Mr. Lambert, with two stout attendants, set out from his residence on the outskirts of the village, and took his way through the intervening wood towards the sea shore. The two men with him were London officers, adepts at thief catching, resolute and determined; they were well armed, but bore no badge of their occupation outside. The agent had screwed his courage to the point of accompanying them, with some difficulty, but he was well aware that if they failed in capturing their man, he would have to encounter the nobleman's rage, and he feared the loss of his favor more than the chance of being shot or stabbed by Hunter; but he knew well it was an errand of no small danger he was upon; yet they were three to one, and he counted much upon the instructions he had given to Curly Tom; much also on Hunter's habit of drink, still he felt by no means easy and would have given much then to have been quietly in his bed; not so the officers; they were in high glee, the prospect of a desperate encounter being by men inured to deal with ruffians as they were, but small in comparison with the hope of a large reward.

They proceeded in silence, however—the agent, who was perfectly familiar with the way, leading. They soon emerged into the open country, and after a few miles began to ascend, and felt the keen air from the sea blow upon their faces—the path soon became rugged and uneven, but sloping towards the sea. In a short time they reached the beach. Here they dismounted and tied their beasts up under a shed, placed there for the purpose of drying fish. There was no moon, but it was a bright starlight night, and the tide was out. Creeping cautiously along, they skirted the base of a large cliff which projected far beyond low water mark, and against which the sea beat in fury when the tide was in; and keeping on its inner side; crept along until they reached the entrance of a cave. Not a word was spoken. Their instructions had been precise—for Lambert, who was born and had spent his earliest years there, knew every spot of the ground. They took their shoes off, and walking upon the hard sand which formed the ground, entered the pitchy darkness. Lambert going first, and knowing that a sound would be fatal—for they would have little chance in that narrow passage—he turned every angle as accurately as if it had been daylight, and the officers holding, one behind the other, followed stealthily along. Soon their path widened, and a glimmering light allowed them that the cavern was tenanted, or had been so. A few paces more, and they stopped. Some large masses of fallen rock here almost blocked up the path, leaving an opening so narrow as to require stooping to enter. Cautiously peeping through some spaces between the rocks, the agent and his myrmidons gazed upon a scene Salvator would have loved to paint. The cavern here expanded into a semicircular hall, stalactites hanging from its roof nearly to the ground. Here and there a niche and recess which seemed done by human art, but which in fact was Nature's handiwork, was seen, and every point of spar, from the lofty roof to the stalagmites below, was glittering in the light of a huge fire of brushwood fed by Curly Tom. A small rill of water trickled from a fissure in the rock above, and wound its way through the sand towards the sea. It was the very beau-ideal of a robber's cave. Its existence was known to few: only accessible at low water, the entrance had escaped notice, and the few that did find it were discouraged on entering by the long and tortuous way which led to this chamber, and did not track it far. The smoke found vent above, as the fire burnt clear and bright, and did not incommode the watchers.

Horace Hunter was pacing the cave with unsteady step, and with delight the officers saw that he was more than half intoxicated. No one could have recognized in the bloated countenance and reckless air of the hunted man, the gay and handsome young farmer of seven years before. There was still the same manly form and intelligent features, but the rich brown hair that then curled round his open brow, now wild and matted, only added to the desperate appearance of his sunken eyes and overhanging brows. Drink did not make him merry. On the contrary he was more bitter than ever. Gloomy and ferocious as he had become since his sister's shame had been known to him, when he drank he only brooded heavier upon it; and the hope of a more complete revenge only restrained him then from some desperate act of violence. As he walked to and fro, chafing with inward passion, he might have been compared to a caged wild beast, hungry and with food in sight, yet unattainable.

'A curse upon you, Tom!' said he. 'Would you roast us alive, this hot night? Leave the fire alone and bring your hang-dog face here!'

He treated his associate with the most bitter contempt.

'I doant fancy biding here with narra light!' said the fellow. 'There be a mort of ugly things here!'

'There's nothing uglier than your own carcase. Drink and get courage. If your heart is cold with fear, warm it with brandy.'

So saying he took a deep draught himself and handed the bottle to his companion.

'I hate the stuff!' said he. 'Bah! it's poison—but it rouses me. Fire this infernal cave! What's that?' A bat, disturbed by the smoke, flitted close before his face. 'I have had nothing but evil omens to-day. What is the day of the month?'

'I heern lawyer say the 26th, yesterday.'

'The 27th of August, then. By twelve o'clock to-night my time will be up—then I shall be free to act. If that old seaman should play me false now! I promised him to wait three years, and I have kept my word!' He was speaking more to himself than to his companion. 'Three long years—too long for vengeance for wrongs like mine to wait. But that he swore, I should tame his pride—but that he spoke of hurling him from his high estate, ere this I would have had the heart's blood of that proud man. But to-night I shall be free, and then—'

He took from his vest a miniature, and gazed upon it long and earnestly. Gradually his features softened, and burying his face in his hands, he wept. There was yet one green spot in the desert of his heart—love for the fair girl he had been betrothed to. Reader, it was a terrible thing to see that man weep—it would have made your heart sicken and your blood boil, while every scalding tear that fell would cry aloud in your thoughts, 'Vengeance, vengeance!'

A strange proceeding now took place. Curly Tom took from his pocket a small phial, and previously filling his own cup with brandy, poured the contents into the bottle. He watched his companion intently during this process, but his terrible emotion too completely mastered him for the moment. It was but momentary. He arose and commenced to pace the floor again. 'My Mary! you too sacrificed! O, fiend! fiend! But my vengeance shall be terrible! To-night I shall be free from my oath!' He walked up to the table and drank. Curly Tom watched him intently as he resumed his unsteady walk.

'He little dreams that I can enter his very chamber at any hour. Oh! coward, fool, dolt, that I have been, to delay my just revenge on the word of that old pirate. I believe him,—some paid minion of this proud man; for he has them in every guise, perhaps the very appointment made three years ago in the West Indies, was a trap, perhaps,—even this clod is a spy and accomplice;' he took a pistol from an inner pocket and cocking it, pressed it to the ear of his companion. 'Tom,' said he, 'if I thought you would betray me.' The ruffian possessed that brute indifference to danger too often mistaken for true courage,—he did not tremble, though a slight paleness was visible on his repulsive countenance as he felt the touch of the iron barrel. 'Whoy! Measter Horace,' said he, 'didn't you save moy old mawther from being drowned by the boys vor a witch, noa, noa,—I be true, and hate yearl and lawyer, and all the great volk.'

'I believe you,' said the other, replacing the pistol, 'but' he began to mutter indistinctly, took a few steps in a wild, uncertain way;—'I feel dizzy,—d——nation,' he staggered to a seat and dropped his head upon the piece of rock that served them for a table;—the opiate had done its work.

Curly Tom cautiously arose, and walking up to him, looked upon him long and steadily, listening to the heavy breathing,—he wished to remove his arms, but the position Hunter was lying in, prevented his doing so. The ruffian felt no remorse; it was true that Hunter had saved the wretch's mother from being abused and ill-treated, perhaps murdered, by the superstitious villagers: true that he had regularly allowed the poor old woman support till her death,—while her ruffian son was pursuing his career of crime,—but the villain knew his own neck was in danger, and being conscious of perfidy, now hated Hunter for his momentary suspicion. As he leaned over the insensible man, his light, bleary eyes gleaming with ferocious satisfaction, his lank, shambling figure, and yellow, matted hair hanging in elf locks round his sharp visage, he looked like an unclean bird of prey hovering over a carcase. And a carcase it was over which he bent his head; dead now to every honorable hope, worse than useless to his kind, a hunted outcast, a mass of decaying matter, kept alive only by the fiery hope of vengeance that burnt within. The ruffian had hitherto been faithful, and procured Hunter those necessities that he could not venture in quest of himself, for he was a deserter from that service, which kidnaps men to do its work, and hunts down the poor slaves when they escape, even in the land whose inhabitants are singing, 'Britons ever will be free.' Bitter,

mockery of freedom. Curly Tom now held up his hand, and cautiously the officers emerged from their hiding place, slowly they came forward, anticipating an easy capture; they were mistaken. The opiate, as it frequently does on excitable natures, had only partially stupefied him, and the first effect wearing off, it now began to act as a stimulant;—the officers had traversed about half the distance to the rock on which Hunter's head reclined, when he started up and looked wildly around him,—for a moment he seemed stupefied, and passed his hand before his face as if to assure himself he was not dreaming—the officers rushed forward. He saw it all now,—he drew a pistol, but Curly Tom threw his long arms round him,—too late to prevent the explosion, however. The ball whizzed by the side of the foremost officer, and struck the agent in the leg—he fell. Curly Tom possessed more strength than his lank figure promised,—but Hunter, thoroughly sobered by his danger; tore his hold away, and striking the ruffian a tremendous blow with the butt end of the discharged pistol, felled him to the ground,—and snatching a knife from the rock close at hand, stabbed the foremost officer to the heart,—he fell with a heavy groan, and the next moment the remaining officer, a man of herculean strength had closed upon him. Terrible was now the struggle—the officer had dexterously struck the knife from his hand as he closed with him, but he could not draw his pistols. Locked in each other's grasp they wrestled together for life: each one well knew that death would be the lot of the vanquished,—the officer burning to revenge his comrade's death:—Hunter struggling for life and his cherished vengeance. Gradually they approached the spot where the agent sat watching the conflict with terrible anxiety, so absorbing as to make him forgetful of the pain of his wound; here, by a tremendous effort the officer succeeded in throwing his antagonist; falling, however, with him. Hunter made desperate efforts to rise, but getting within reach of the agent in the struggle, Lambert seized his hair, and held his head firmly down; to master his hands now, and slip a pair of handcuffs over his wrists, was, to the powerful and practised officer, the work of a moment,—and furious with passion, but exhausted by the struggle, Hunter lay upon the earth, a captive.

'A game fellow,' said the officer, wiping the perspiration from his brow, 'and strong as a bear, but I've tackled as tough hands as him in my day, and so has poor Bill Maddox there. I hope the Earl will settle a good pension on his widow—it will be sad news for her and her four poor children:—stone dead. He took the famous highwayman, Jack Blount summut in this way, five years ago. Well, he's gone, and as the tide is coming in, we had best be smart. That shot was unlucky for you, Mr. Lambert, but such accidents will happen. You behaved beautifully. I'm blowed if I thought you so fly to these things. Poor Bill—we can't move him until next tide, but sea-water can't hurt him now. I must rouse this chuckle-headed yokel and get him to help me.' So saying, the veteran thief-catcher lighted a dark lantern, and taking some water sprinkled it freely over the head and face of Curly Tom. The fellow returned to consciousness, and gazed around him—a look of ferocious joy animated his eyes, as he saw that Hunter was taken, and drinking the brandy he had reserved unmixed in the cup, he professed his readiness to help them.

Leaving him to guard the prisoner, first, however, removing Hunter's remaining pistol, and even securing the discharged one, the sturdy official took the wounded agent on his back, and crept out of the cavern. He soon returned, and with Tom's assistance removed Hunter also, who now from the combined effects of exhaustion, liquor and the opiate, was fast becoming insensible. Leaving one of his pistols with the agent, in case of treachery on the part of Tom, he once more returned, and taking off the outer clothing of the dead man, fastened a cord to his feet, and tied it firmly round a piece of rock near by. He was too used to scenes of blood to shed a tear, but he shook the dead man's hand and said, 'Poor Bill,' as he quitted the cave. His precautions with regard to Tom were unneeded. The ruffian's hatred had been aroused by Hunter's suspicion, and confirmed by the blow. Nor did he refuse to start to Erith for assistance to convey the prisoner and the wounded man there. He had been assured by the agent that no harm should come to him, protected by the powerful influence of the nobleman; and to allow himself to be captured had been part of the plan from the first. He had not sense enough to know that the heavier crime of murder, now laying upon the soul of the unfortunate man, did away with the necessity of his appearing as a witness, as it had been done in the presence of Mr. Lambert and the officer, and they were both too wise to undeceive him. Indeed the wily agent had determined, now that the service was rendered, to sacrifice his ruffianly tool, as his presence might be troublesome. Tom soon returned with a posse of police officers and a cart, to convey the prisoner and the wounded. A surgeon was with them, who dressed Mr. Lambert's wound temporarily, and pronounced it trifling, and the party departed—Tom going with them as a voluntary prisoner.

Great were the encomiums bestowed upon the officer by his brother official, for his conduct and bravery, and the agent also came in for his share of praise—and the whole party were in high glee at the result, which brought one poor hunted human being under the dread ban of the law, while he whose lust had driven him to crime revelled in luxury, and mingled with the fair and good, courted and caressed by those who would have shrunk from expressing any sympathy for the poor victims of his pride. Weep, angels, weep! and devils, shout for joy! Hell has no minister so powerful as the proud man's lust.



It may be as well to mention here at once, that the agent, pursuing his plan of getting rid of Curly Tom, much to that worthy's astonishment, pressed the charge of highway robbery against him, before the trial of Hunter, which was postponed through the influence of the Earl, which was indirectly exerted also to procure the condemnation of his base tool; and so it came to pass, that after a trial, which was a mere form—for the seaman's bare deposition, which Mr. Lambert had taken, was admitted as evidence—the good citizens of Canterbury being in want of a little excitement, that interesting individual performed a dance upon nothing, in company with a sheep-stealer and a forger, for their especial behoof, one fine day in September, under the personal superintendence of that accomplished artist, Mr. John Ketch, in the presence of a highly respectable and numerous audience, who all retired to their homes in peace, much gratified with the exhibition, and duly impressed with a deep sense of the blessing of being permitted to vegetate under the protection of a government so wise in its councils, so strong in *execution*, and so paternal in its care for the morals of the people. So said the newspapers next day; and thus ended the career of a heartless ruffian, it is true, but who had ever sought to make him otherwise?

To proceed with our tale. Day was now fast breaking; and as the cortege moved away with their prisoner, two horsemen appeared on the cliffs above, and dismounting, watched the party with eager but disappointed looks. They were the old seaman and Edward Barnett, the village landlady's eccentric nephew.

'A plague upon my awkward riding,' said the seaman, 'we are too late! They have taken him, and that rascal too with him! Fool that he was to place any confidence in such a hound.'

'He had been kind to Tom's mother,' said Edward, 'and he supposed that gratitude.'

'Bah!' said the sailor; 'when you have buffeted as many of the storms of life as I have, you will learn that gratitude is rarely found on earth—least of all in such a brutified nature as that fellow's. But why do I blame him? He was but what the law made him. Punished for a venial fault—sent to herd with hardened malefactors, is it wonderful that he should become schooled in crime? And now the law will punish the criminal it made. We can do no good here—we had best proceed to Erith. I have much to say to you, and much to do. But fear not; Hunter shall not perish without an effort, even if I tear him from the gallows.' So saying, he remounted, and the two slowly pursued their way towards Erith.

---

## CHAPTER VI.

### THE BEGINNING OF RETRIBUTION.

The seaman and his young companion were seated together in a little room overlooking the sea, on the evening succeeding the events we have related. It was one of those calm, lovely evenings when summer, seeming loth to give over her reign to the approaching fall, exerts herself to display her utmost beauty, and withholds her scorching heat. The declining sun gave a rose colored tint to the landscape, and the vessels passing to or from the modern Babylon added animation to the scene. The mariner was gazing at the distant horizon, lost in thought. That memories of other days were recalled to his mind, was evident from the working of his features; that it required a strong effort to restrain his emotion, was perceivable from the compression of his lips. There was a massive grandeur in his aspect as he sat, well befitting the scene. His young companion had his thoughts also, and they were not the usual ones of his age. The meeting with the seaman and subsequent events had roused him from his usual listless, wayward fancies, and he was going back in memory to past scenes—shadowy and indistinct—but all in some way mixed with the locket he wore suspended, unseen, around his neck. That the time had now arrived when he was to receive an explanation of the past, he felt sure; for his aunt had often told him that when Walter arrived he should know all: and from the seaman's manner he conjectured that the long wished for hour was come.

'Edward,' said the mariner, 'I wish you to tell me all that you recollect—not of your life at your aunt's, but before that.'

'And then,' said the boy, 'in return you promise to tell me of my parentage?'

'You shall know all.'

The boy paced the floor for a few moments. His figure was slender, but lithe and active, of medium stature; and there was a restlessness about his movements that told of a wild spirit within. His face was remarkably handsome; features chiselled in a form that would have served a Grecian sculptor for a model—and his long dark hair fell in glossy locks even over his shoulders. He stood holding the back of a chair, and looking more to seaward than at his companion, began:

'It was not in this country, I am sure, that I first recollect myself, in a handsome house, but built different from these. There were cocoa-nut trees growing near it; and other trees that do not grow here; but I have seen something like them in the Earl's green house. There were luscious fruits, but not English ones—oranges and bananas I am sure. The people around us too were black. I remember I was frightened when I came here first at seeing so many white people and no blacks.'

Walter regarded him steadily—but the young man's eye was seaward. He seemed to see before him the scenes he was depicting.

'There was a piazza round the house, where I used to play, and a sweet lady, very like poor Mary, but dark-haired, whom I used to call mother.' There was powerful emotion depicted on the listener's face, but he said nothing. 'I remember a handsome gentleman, but he was not there often. He wore a uniform, but not like the officers here. I think now he must have been in the navy. I used to call him papa. I am sure he must have been my father, and he was a sailor; for my mother was always looking out to sea when he was absent, and he took me onboard a man of war ship once, where, from the deference every one showed to him, I judge, now that I am older, that he must have been the Captain of. These things seem to me like shadows, for I was not more than five years old then.'

'True,' said his auditor, 'your memory is good.'

'There was a party. I think my father was not there, but I was handsomely dressed, and ladies caressed me, and the negroes were dancing. I think it must have been my birth-day. I remember a servant bringing in a letter, and my mother fainting, and talk about a great fight at sea, and my father's name mentioned—I have forgotten it—but ladies told me not to cry, and I knew that he was dead; but I did not know what it meant. After this another gentleman used to come there, very handsome too, but not like my father, for he had a dark face and dark hair, and my father's hair was light. I did not like him, for he spoke very stern to my mother, and she used to weep, and was

very much frightened by him. It was some paper he wanted from her, and he offered her gold once. I saw him, for I hid myself and watched him. Then my mother got sick—they said she was getting better, and I remember being much surprised one morning, when the old nurse came down and told me she was dead. She had died suddenly in the night, they said, and yet she had been better the evening before.'

A deep groan burst from the seaman's lips, and his face was ashy pale. The young man trembled as he proceeded.

'The dark gentleman came and took me away from the house, and I never saw it again. My old nurse went with me. I was six years old then, and I lived with her, in a poorer place than before, and not close to the old house, for we went a long way in a carriage to reach it. We lived together so till I was near eight years old. The dark gentleman never came near us—but one day a man came, and said he had bought her, I think, and she must go with him; and they took her away from me. I clung to her, but they beat me away. Unseen by them she tied this ribbon with the locket to it round my neck, and telling me never to part with it, for it had been my mother's, and would one day bring me rank and fortune, she went with her new master. A kind old colored woman, who used to say she was free, took me to her house, and I remember nothing more until you found me there, but that I hid the locket even from her, for I was afraid she would take it away, and that the man who took Nurse away, said, looking at me, "What a pity he is white!"'

The youth had been so intent upon collecting the reminiscences of his childhood, that he had failed to perceive the effect it had upon his companion, and the darkness now prevented his face from being seen—but the agonized sobs that broke from him now and then told that the fountains of his heart were stirred, and his very soul harrowed up, and memory had conjured up a series of terrible recollections. Lights were brought into the room, but all traces of agitation had disappeared, and his countenance bore only the look of stern, implacable resolve.

'Edward, tell me one thing more. Have you ever seen the dark-haired man since?'

'Daily, for these ten years almost. I knew him instantly.'

'His name?'

'De Montford! It was by accident I discovered the secret of the picture in the justice-room, and I have availed myself of it to play spirit to him and his base agent sometimes.'

'It was a boyish trick—but you have sterner work now in hand than playing ghost—you have to avenge a murdered mother!'

'Ah! then my mother's sudden death, when she was recovering—'

'Was the work of poison!'

'I see it all!' said the young man. 'The papers he wanted, and she refused—but I will kill him!' He started up, and was rushing to the door. The iron grasp of the seaman arrested him.

'You must be calm, Edward. He shall die, but he must not perish by your hand. He is your uncle. But he shall first be stripped of his assumed rank and title, and his proud spirit humbled. Then he shall answer in a court of justice for the murder of your mother.'

'Who, then, was my father?'

'The eldest lawful son of the late Earl De Montford!'

Edward gazed proudly around him for a moment, then sank into a chair, and burying his face in his hands, burst into tears. Walter did not disturb him, but sat regarding him with a look in which affection was strangely mingled with his stern resolve. At length Edward raised his head.

'I am composed now,' said he, 'and will be guided by you, for I am convinced you have been a true friend to me. But there must be no reservation—you must tell me all.'

'Or you will doubt me. It was never my intention to keep you in the dark or in leading strings longer than necessary. I am above the petty spirit which, to magnify its importance, keeps to itself half a secret, to be told at another time. You shall know all, and we will concert our measures together as man and man, for I can easily guess from this moment you have put off the boy for ever.'

It was true. Even in that short time a marked change had come upon him, and it was with the resolved air of a man prepared to hear, determine, and to act, if need be, with firmness and deliberation, that he pushed his chair from the table, and folding his arms upon his chest, sat waiting for the mariner to proceed in his tale. That burst of tears which followed the announcement of his rank was a last farewell to boyhood, and his firm attitude and handsome features looked worthy to uphold the proud motto of his house, "Nulli Secundi."

---

## CHAPTER VII.

### THE SEAMAN'S STORY.

'I was little more than twelve years of age when I entered the British Navy as a midshipman, much against my good father's will, for I was his only child, and my mother died the day I first saw the light. But I was a wayward, unruly boy, and he feared I might take to bad courses if restrained. It was a time of stirring action, and before I was twenty years of age I bore upon my shoulder the epaulette of a lieutenant, earned in many a bloody fight. The naval service was then in high favour, and many sprigs of nobility condescended to walk the quarter-deck as captains and commanders, though they seldom knew as much about a ship as the ship's boys. One of these was the late Earl de Montford—He had the haughty courage of his race; few of them were deficient in that; but he had disdained to learn his profession, and when he was appointed to command a corvette, I was sent on board as first lieutenant, but in fact as what is called a nurse—to do the work, while my incapable but titled commander reaped the glory. We were anchored in the bay of Naples, having borne despatches to the fleet then stationed there, and were under orders to sail the next morning, when he sent for me into his cabin, and with more familiarity and kindness than he had ever used to me before, he confided to me that he was in love, and wanted my assistance to rescue her he loved from a convent. Fond of adventure, I consented, and we succeeded, so they were that very evening united by the chaplain on board the corvette. She was very beautiful, and he was both proud and fond of her. His father was alive, however, and as the old Earl had negotiated for him a marriage with the daughter of some proud Marquis in England, he did not dare to acquaint him of it—for though the title and the estate could not be alienated, yet the enormous personal property could, and even his love for the fair Italian could not reconcile him to risk the chance of enduring what he would have called poverty. He purchased a villa at Leghorn, and leaving the ship almost entirely at my command, lived for the time at least as though there was nothing on this earth to care for but love and beauty. The chaplain had been sworn to secrecy, and the other officers of the ship thought it was merely some amour of their commander's, and whatever they thought of his morals, they of course took good care to say nothing. The chaplain died soon after, and I remained the sole living witness of the marriage. The birth of a son, however, instead of linking their hearts closer together, became the apple of discord between them. She pressed him to acknowledge her as his wife to the numerous English families who were settled around Leghorn, and who refused to associate with one in her equivocal position. She had borne their slights patiently when only directed against herself, but the feelings of a mother were aroused when the finger of scorn was pointed at her child. It was too evident, also, that his affection for her was on the wane. He was absent from her more frequently—spoke of the necessity of attending to his duty—his duty! oh, the ready excuse man finds to do evil. Better far for that poor girl would it have been to have been buried in the deepest recesses of the cloister, than to have attracted the notice of that vile unprincipled nobleman. It was about this time the old Earl died, and he quitted the service. There was no bar now for his acknowledging her as his wife—but he was satiated—his fleeting passion had evaporated. He had visited England in the interval, and seen the bride destined for him by his father: and her beauty, the enormous addition to his wealth and power which would accrue from the marriage, tempted him, and he now regarded the woman who had surrendered to him the most sacred of man's earthly trusts—her young heart's first affections, her hopes of earthly happiness—as a barrier to his pride and the vile passion he dared to dignify with the name of love: and when she now asked him to do her the justice which he could no longer plead his father's anger for denying—O God, where were thy thunderbolts!—he told her that their marriage was a sham one, that the chaplain was but a servant in disguise, and that in truth she was only his mistress. I had been dismissed the service through him—I will speak of that anon—the chaplain was dead—she did not even know his name or mine—how could she help herself? She never held up her head after this. She refused all support from him, though he offered to settle upon her a considerable pension. For five years she supported herself by teaching music at Florence, whither she removed with an attendant whom her gentle manners had attached to her, and from whom, years after, I learned these particulars. She never would, however, consent to sign any papers which would affect her own or her son's rights, nor would she part with the certificate of marriage the chaplain had given her, though he tried hard to obtain them, as also the letters he had written to her from the ship at different times in which he had always addressed her as his wife. But her constitution had received a shock from which it never recovered, and at the expiration of that time she died. His agent, who had been secretly watching her by his orders, took the boy to England, where he was sent to a distant school for education under a feigned name, and at the age of fifteen sent to sea—where, as he was believed to be a natural son of the Earl, and the latter favored that

assumption, his advancement was rapid; not more so, however, than his gallantry and good conduct deserved, for I often heard his name mentioned with applause, though I little dreamed then who he was, or how closely the fortunes of those I loved the best were connected with him. He was your father, Edward, and the proud man who now usurps your title and your fortune is a bastard!

The look of high reserve that flashed in the young man's eyes as he listened to the tale, contrasted well while it agreed with the stern, implacable, expression of the mariner's countenance, which deepened, if possible, as he proceeded.

'It was many years afterwards that I learned these particulars, but I must now speak of my dismissal and its cause. From the day that your grandfather's love for his young bride began to decline, he hated me, yet he feared me—and took good care to conceal it: I was young and unsuspicious, and when he procured my appointment as first-lieutenant in a frigate bound to the West Indies, I thanked the man who was plotting my ruin. The commander of the frigate was one of the meanest wretches that ever disgraced a command—an impoverished rake who gained the means of continuing his excesses by flattering the vanity and aiding the schemes of his richer companions in vice, and duping the more inexperienced. He had received his directions evidently, and every studied insult, everything that petty spite and malice could inflict was tried to provoke me, but the contempt I felt for the reptile restrained me full as much as the iron bands of discipline. We arrived at Jamaica and cruised about the Bay of Mexico for some time, when the daughter of a rich planter, in South Carolina, (then one of his Majesty's colonies, now one of the brightest stars in the flag of the Great Republic,) took a passage with her governess in our ship to New Orleans, whither we were ordered on service. The Captain tried to make himself agreeable to her, but she treated his advances with coldness so marked as to enrage him. She saw through, with ease, the flimsy veil he attempted to throw over his vices. It was my happy fortune to save her from a watery grave. In landing, she incautiously stepped from the ladder before the boat was sufficiently near to receive her, and fell, into the sea. I dashed over the taffrail, the tide was running strong, but I caught her in my arms, and bore her up, until the boat came to our relief. Her father, who awaited her arrival, was unbounded in his expressions of gratitude, and invited me often to his hotel, he also gave me a cordial invitation to his plantation in Carolina. The Captain made many unseemly jokes upon the affair, but I bore them all,—for now I felt I loved and I hoped, who does not hope at twenty-three? I hoped I was beloved in return. Annoyed by my patience, galled and mortified by his rejection, he lost his usual prudence, and one day boasted before a knot of loose companions in my presence, of favors he had received from her,—from her who was purity itself, and had scarcely deigned to exchange the common courtesies of life with him. I struck him to the deck for his detested lie, and gave myself up as prisoner. I was tried by a Court Martial and declared incapable of serving his Majesty again. I had expected death, and his powerful friends did their utmost to procure a sentence, but the Admiral was a just though a rigid man, and well knew the character of my accuser,—the provocation was taken into consideration, and the services I had rendered during eleven years in storm and battle. I was dismissed. Mr. Elliott, the planter, offered me a home. I had saved considerable prize money. I was disgusted with England, and I loved. He, himself, offered me his daughter, and she did not refuse me. We lived together three happy years, when she died in giving birth to a daughter. Oh! she was beautiful,—most beautiful, but linked to my wayward fate, she perished.'

There was a softened shade over the seaman's face, and the stern expression had gone,—he brushed some moisture from his eyes with his strong hand, and turned aside for a moment; the young man was deeply moved.

'A life of inactivity gave no balm to my wounded spirit, and I burned for action. Mr. Elliott saw it; "Side with us," said he, "there has been a Tea Party in Boston harbor that will bring thunder ere long, and I will procure you a command;" he did so. I joined the Navy of the United States, and bore the stars and stripes aloft through many a scene of peril and of death. Mr. Elliott doted on his grandchild, and she remained with him. Those were times that tried men's hearts, and my father-in-law was chivalrous as he was generous—he gave the bulk of his fortune to his country's need, and confiding my daughter, then a child some two years old, to a distant relative, carried his grey head and feeble limbs to join the ranks of those who fought for liberty. He fell gloriously in battle, and when, after years of active service, peace was declared, and I came home to seek my daughter, the lady who had her in charge had died of fever, and my child had been taken away, no one could tell me by whom or where:—all traces of her were lost. I now longed to see my father, peace was declared, the Independence of America admitted, and as I had fought under an assumed name, I anticipated no danger. I was received as one from the grave. I never mentioned my marriage, even to my father, but accounted for my absence and my silence, by saying that, ashamed to come home after being dismissed, I had gone in a merchant vessel to India, and had there been taken prisoner by the Lootees, a species of banditti, while on an excursion inland. My tale was easily believed; to please my father, I

married again. The sister of good Mrs. Ally, my second wife, was a good and kind woman, and after the birth of my daughter Mary, I again hoped for happiness. Vain hope. The malice of the De Montford family was again let loose upon me. Your grandfather was dead. I knew nothing of the events that had occurred during my absence, and supposed that his first wife had died in Italy, and her son also. But the countess had found among her husband's papers, so I suppose, at least, for on this point I am uninformed, something which threw light upon the past, and, supposing that I knew of the existence of your father resolved on removing me. I was fond of shooting, and one day shot a hare in a distant part of the manor. I had been watched, by her orders, and a charge of poaching was instituted against me. Her son was absent then, upon his murderous errand, as I afterwards knew. I was tried on a charge of poaching; the game laws were severe; the justice was her creature, and despite the entreaties of my father, and the tears of my wife, I was condemned to transportation for seven years.'

A bitter sneer was curling on the young man's lip; the mariner's face had resumed its stern expression. 'The details of my escape from Botany Bay are unimportant. Suffice it, that I once more reached America, and devoted my energies to tracing the fate of my child. In Savannah I was fortunate enough to meet with the attendant of your grandmother. She had accompanied a family of refugees from European disturbances, and from her I learned not only what I have told you already—but that my daughter had been married, and that her husband was no other than the son of her old mistress and your father!'

The young man threw his hands towards heaven and fell on his knees.

'O Thou, whose ways are inscrutable, blessed be thy name, for out of darkness thou hast brought light, and turned the misdeeds of the guilty upon themselves, and made the promptings of nature yearn in the heart of the orphan boy towards the father of my mother.'

He fell upon the old man's neck and sobbed. Such emotions are no disgrace to manhood. The mariner strained him to his heart, and it was some time ere the emotion of both had subsided sufficiently to enable the one to ask or the other to give further explanation. At length the mariner resumed. 'From this woman, who had recognised your father by a peculiar mark on his hand, I learned that she had kept the papers of your grandmother and the locket, and gave them to your father; but he treated them as fabulous, and her as an impostor. Your mother, however, gave credence to her tale, and even consulted a lawyer; but they were not sufficient without my evidence, and your father would not take any steps in the affair. Your mother kept her as an attendant till her own death, but your uncle must have heard from some source of the existence of his brother; and after his death, which happened in battle at sea, he tried to induce the widow to give up these papers. Failing in this, by a large sum of money he tempted your nurse to poison her, and possessed himself of them, representing himself as her husband's brother, but concealing his rank. She was also to make away with you; but repenting of the murder of your mother, she concealed you for some time in a distant part of the State, but he discovered her and sold her to a Tennessee planter. It was but this year I succeeded in tracing her, and finding her almost at the point of death, got these facts from her, regularly drawn up and witnessed. I bought her freedom first to enable her to give evidence, and soon after her earthly account was closed. Violetta D'Arista, your grand-mother's faithful attendant, gave me a clue by which I traced you; and she is now in London, anxious to fold you to her breast, and to aid you as far as in her power, to restore to you your birthright and inheritance.'

'And the papers?'

'If not destroyed, are in his possession.'

'Then I can obtain them, although he has had, as he thinks, all the subterranean passages stopped up, yet there remains one, by which I can penetrate to his very bed-room unseen, although a stout man could not.' The seaman mused. 'It would be dangerous. Your uncle is a brave man, and powerful. If he awoke—and such consciences must be bad sleeping companions, you would be sacrificed.'

'I fear not—for vengeance on my mother's murderer I would dare anything.'

'It must not be, young man. You have a sacred duty to perform, more binding far than vengeance, which is the Lord's alone. You have to heal the sorrows of those who will be in a great measure dependent upon you to redress the wrongs of years of oppression, to be a father to the tenants of your wide domain, and your life must not be idly risked.'

'I have it!' said Edward, eagerly. 'You say my father was fair-haired, and I am like my mother.'

The seaman took a miniature from his vest, and handed it to him. It contained two portraits—one of a captain in the British navy, in full uniform, his head bare, and locks of fair hair falling even over his shoulders, for he had disdained the peruke then in fashion—and that of a lady, whose dark eyes and raven ringlets told that her nativity had been the sunny south.

'Johnson is not unlike the portrait of my father, and is a slim man,' said Edward. 'He will readily go with me. I will personate my mother. I am confident the papers are not destroyed, for I have often seen him when he little dreamed an eye was upon him, examining some papers he keeps in a small casket on his toilet, and one in particular, a document of some length, which he has often seemed to me about to tear, but always replaced.'

'It will do,' said his grandfather. 'Good Mrs. Ally will procure you the necessary attire. She can be trusted fully, and I will reconcile her and Johnson, so that we can all work in concert. Those papers secured, with the evidence of Violetta and the dying deposition of your nurse, with the evidence of the lady who took charge of your mother, and who is also alive and in London, I doubt not soon to see you in the enjoyment of your rights. It will be a strange anomaly—an American a British peer.'

'And then, dear grandfather, you will allow me to repay you, in a small measure, by my affection and care of your declining years, for all the anxiety you have endured in securing my interests.'

'Not to me, young man, not to me. My lot on earth is cast. I am here a fugitive, in danger of a felon's doom. I shall return to honest, plain America, and there devote the remainder of my life to succoring the poor and afflicted. Do you likewise here, remembering that you are but the steward of your wealth. Let the former oppressions of your house be forgotten in your good deeds. Let your voice be heard in the high court of which you will be a member, whenever the artizan and the laborer need a defender from the foul enactments that are there consummated. Let your passions be subjected to the control of religion and morality—let no avaricious knave oppress the hard-toiling farmer in your name, but see to these things yourself. Let your ear be easy of access, and your heart be open, and then, my Lord, I shall be more than repaid, you will have had a nobler vengeance than any man could give you, and will earn in truth a right to bear the proud motto which your fathers arrogated to themselves, emblazoned, not on your escutcheon, but in the hearts of grateful men—

*"Second to none in deeds of charity."*

---



## CHAPTER VIII.

### THE END OF TWO VICTIMS.

Walter Waters, or Captain Williams, as he called himself now, and in fact He had come to England ostensibly as the commander of a trading vessel, had determined to effect the escape of Horace Hunter. That his own plans might not be disarranged by any violence towards the Earl, he had on an accidental meeting in the West Indies promised Hunter a more full revenge if he waited for three years; and feeling that his capture had in some measure been owing to his appointment, he revolved in his mind many plans for his rescue. His trial had taken place, and as the evidence was conclusive, he was condemned to death. As his friends were now permitted to see him, Walter with his daughter to whom and his father he had made himself known in private, although he still stopped at Mrs. Ally's when not in London, obtained permission to visit the doomed man. Who shall attempt to portray the feelings of Mary Waters, as in company with the parent so long mourned as dead, she set forth to hold the last communication on earth with him to whom the treasure of her young love had been given. Joy at once more beholding her father mingled in painful intensity with her heart's desolation when she contemplated the fearful position of her lover; and to her father's assurances of rescuing him, of reclaiming him and of their union and a happy life in America, she only replied by a mournful feature, and pointing to her own emaciated form and hectic cheek. Her beauty had now assumed an almost unearthly character. The lustre of her dark blue eye and deathly paleness of her cheek told indeed her race was nearly run. As they all stood together in the steward's house on the morning of their visit, they formed a strange and touching group. The bowed figure of the aged man whose life had been prolonged so far beyond the usual term of man's existence, the strong form of the mariner, whose vigor was unabated although near sixty, and the wasted figure and sharpened features of his daughter, who though scarce more than past the threshold of womanhood, was yet closer to the dread abyss of eternity than either. The old steward looked wistfully after them as they passed out into the wintry air.

Hunter's passion for drink, his remorse for the officer's death, his burning thirst for vengeance, and his own sense of self-abasement—all conspired to add to the fever of his brain; and when Walter and his daughter were admitted to his cell, it was a gibbering maniac that rushed forward to meet them. Walter removed his fainting daughter from the appalling spectacle, and returned with a sickening heart and terrible forebodings. The shades of evening had given place to bright moonlight ere they reached the castle. The driver used his utmost speed, but the snow hindered their progress, and just as they arrived at the castle gates, the horses swerved violently, and starting to the side of the road, stood snorting with terror. Walter sprang out, and in the momentary strength caused by the excitement, his daughter followed him. The Earl with some companions rode up at the moment of seeing the carriage stopped; but a more ghastly obstacle obstructed their path—for there in the snow drift at the gates of the mansion where her seducer lived in splendor, lay the corpse of the once fair, gentle, and accomplished Ellen Hunter.

The Earl gazed upon the body of his victim for a moment, and even his callous heart was touched. It was evanescent, however, for on one of his companions asking in a tone of coarse buffoonery, if he was contemplating that frozen carrion with a view to ornamenting his hall with it as a statue, he replied in the same strain, and was turning his horse's head towards the gate, when he was arrested by the stern voice of the mariner.

'Blasphemer, peace! Add not insult to the fearful injury you have committed to that poor piece of clay! Man of the marble heart, your career is near its close! This is not the only one of your crimes that has resulted in death. There arises from the earth in South Carolina a voice that calls for vengeance on her murderer. The child you thought without a friend, whom you hoped would perish unknown, is even now preparing to assert his rights, and drive you, titled bastard as you know yourself to be, from your usurped position. Your agents have confessed, and nothing can save you from the merited punishment of your crimes. Repent, weep tears of penitence over this poor form, and make your peace with God. You have but little time left ere man's justice will claim you as its due.' He replaced his daughter in the carriage, and lifting the body of poor Ellen as tenderly as if it had been a child, placed it inside, and thus the dying and the dead departed.

At headlong speed the Earl reached his mansion, galled to madness. He pondered long and deeply who the mysterious seaman could be, but could arrive at no satisfactory conclusion; but reflecting that he still possessed the

only papers which could be produced in support of the claimant of his title, he became more collected, and resolved first to destroy the documents, and then to devise means for getting rid of the obnoxious seaman, and also of his nephew, if he dared to press his claim. Somewhat relieved by these considerations, he entered into an explanation with his friends, spoke of the seaman as a harmless maniac, and succeeded in calming the irritation of their wounded pride.

But he could not calm the raging tumult of his own heart—he had entered into preliminary engagements for a marriage with the daughter of a house as haughty as his own. His mother's fame would suffer, not that he cared one jot for any abstract idea of virtue, and she had been sinless in that at least, for she knew not that her husband had another wife. He had been offered by the king, and had accepted a high confidential mission to a foreign power, and now when every proud wish of his heart seemed to be gratified, to be threatened with the loss of all—and more, to be subjected to the vulgar gaze as a murderer—death he felt were better. He drank deeply, which was not his usual custom, and to conceal his feelings affected a wild gaiety, which, however, failed in deceiving his companions. Midnight had long passed when he retired to his chamber, harassed and jaded by the efforts he had made to preserve appearances, and still more irritated by the wine he had drank. A vague feeling of horror moreover began to steal over him. He looked out upon the moonlight and drew his head in with a shudder, for he fancied—it was but fancy, that he saw a body lying upon the ground. He tried to nerve himself to the task of destroying the documents, but could not bring himself to touch the casket. At length he opened the casket; a deep groan seemed to issue from it. The long low musical laugh he had heard before sounded in the room. The next moment he hardened himself and began to read them over. They consisted of the letters mentioned before, his father's marriage certificate, and the addition of a still more important document—a statement drawn up by his father a little before his death, in which he acknowledged Captain Piercy, the name his son had been known by, prayed for forgiveness for the wrong he had done his mother, and fully acknowledged his marriage with the fair Italian. This was the document which had led the countess to persecute Captain Williams, and her son to murder his brother's widow. He read them slowly through, and taking them in his hand walked towards the fireplace; he was about to cast them in, when the same low mocking voice sounded so close him—he turned and beheld an appalling spectacle. The picture of his own mother, that had occupied a large compartment of the room, had entirely disappeared, although but the instant before he had seen it—and in its place appeared the figures of a man in a full dress naval uniform, and a lady in the costume of the one he had murdered in distant America. He gave one wild shriek and fell senseless on the floor. To seize the papers was to Edward, whom our readers will easily guess to have personated the lady, but the work of a moment; he regained the panel and swung it to just as the domestics were hurrying up; not however before he had fixed upon the toilet with a penknife of the Earl's, a paper with the word "doomed!" in large characters traced upon it.

---

## CHAPTER IX.

### THE AGENT'S PUNISHMENT.

The village bells tolled mournfully, and the stout farmers looked with Saddened faces at each other on the morning which was to consign to earth the remains of Mary Waters. Matrons held their aprons to their eyes as they followed the melancholy procession. She was laid by her own request in the same grave with Ellen Hunter. The old clergyman who had loved her as his daughter, faltered as he read the solemn words, "I am the resurrection and the life," and when the ceremony was concluded, there was not an eye that was not filled with tears. When the old steward heard the earth fall upon the coffin lid, his frame was seen to quiver, he fell forward, and his spirit had departed. They laid him by the side of his grand daughter the next day; and it was soon ascertained that he had left the bulk of his savings to the poor children of Johnson, and that Mrs. Alice Goodfellow was appointed sole executrix.

Rumors now began to circulate about the Earl—a claim had been laid in due form by Edward—and the tumult which raged in his heart was indescribable. Yet he dared to think of vengeance, and swore an oath to have the heart's blood of those who had humbled him. As he approached the house of the agent he determined to ask his aid in carrying out his schemes. Mr. Lambert, however, had no intention of being dragged down into the vortex, and received him coldly.

'This is not the reception I expected, Mr. Lambert.'

'I beg your pardon sir.'

Sir!—how the word grated on the ear, that had been accustomed to 'my lord,' and that in the humblest tone; 'I merely wish to intimate, Mr. Lambert, when it is your gracious pleasure to listen, that I want a word or two with you.' He spoke in his old sneering tone; the other, who from habit, remained standing in his presence, bowed; but he did not answer a word. 'Since you cannot, or will not speak—hear one thing; for your interest is thereby affected; and that I suppose will reach you—do you suppose, that those who have attacked the master, will let the servant escape. Will not even the great Mr. Lambert, be required to give an account of his stewardship; when so humble an individual as myself, has been deemed worthy of notice?'—he bowed with mock humility. 'My accounts are prepared to undergo the strictest investigation. My—sir—' said the agent, recovering his self possession the instant business was mentioned, 'both as regards the estate and personal account, my balances are correct—that of the estate which yet remains unsettled I am ready to account for to—the proper parties—' (he substituted for the new Earl's name which rose to his lips,) 'the small balance on the personal account which is in my favour, I shall be happy to take your note for—properly endorsed.' The man of business had been so occupied with the figures he was running up in his mind, that he had failed to observe the gathering storm on his companion's brow; he had been so used to hold down his head while speaking to his patron, that even now he could not forego the habit; but the last word had not passed his lips fully—ere the earl rose from his seat, and seizing the heavy brass lamp upon the table between them, struck the unfortunate man a tremendous blow with it, which prostrated him to the floor; smashing in a portion of his skull, and inflicting a mortal wound; the agent groaned and lay senseless; the servants rushed to the scene on hearing the fall, but the furious appearance of the murderer terrified them, particularly as he still held in his hand the weapon he had used; he burst through them, and mounting his horse at the door, fled as though pursued by all the fiends of hell.

---

## CHAPTER X.

### RETRIBUTION.

Regardless of the wintry storm, the murderer spurred on the noble animal he rode; he had no purpose in the flight, he had arranged no plan of escape; unused to act for himself, his movements were all uncertainty: now he reined in his horse, and listened as if for pursuers, but none came: now fancying he heard the mocking laugh he had so often heard, he dashed forward, as if the furies were behind him; the storm meanwhile increased in its violence, he felt it not; the warfare of the elements was calmness to the tumult of his heart; he looked up to the heavens, but there on the edge of every lurid cloud, he saw it, he saw them; not one but hundreds: maidens with stony blue eyes, all glaring upon him; he looked upon the earth, a gibbering madman was running by his side, howling and hooting in the wind; now so near as almost to touch him: now hundreds of yards away, but always the same; behind him with his ghastly mangled head, came the form of his last victim, forward! forward! while the crashing thunder pealed above his head; he shook his impious hand against the sky, and still darted onward, till the horse stopped, snorting on the beach; and there as the great sea, rolled in foaming and turgid, there, he saw it plain in yon glare of livid lightning, on the crest of every curling wave, a dark haired lady lay, glaring at him with eyes that looked like coals of fire; a monster wave came rolling in, and the frightened horse turned, and seizing the bit between his teeth sped homeward, but still he saw them in the clouds behind, before, beckoning to him, calling to him, in the voice of the great wind; on, on, towards the castle gates, he looked up to the battlements; they were there, on every turret's top, on every pointed arch, from every window, visible to him, as though it had been bright daylight he saw them. The horse unable to check his momentum dashed against the castle gates, and falling over crushed him in its fall; and there on the very spot where one of his victims had lain in the sleep of death, there lay the mangled and now dying man, mingling his blood with that of the expiring animal. Day dawned, and when the red sun rose, it shone upon a corpse; the storm had ceased, but the wind had blown the snow from off it, and the laborer who found the body, rushed from the spot in terror at the horrible expression of the dead man's face.

---

## CHAPTER XI.

### CONCLUSION.

Three years have passed away,—the young Earl has arrived at age, and is coming to take possession of his domains—after finishing his education at Oxford; great preparation has been made to welcome him. Foremost on the occasion is Mrs. Alice Goodfellow, and as their Lord's reputed aunt for so many years, she is a person of no small importance:—still single, but beginning to think of settling now, as her glass gives awkward reflections,—but still balancing the claims of her admirers, though she does give color to the report of shewing a preference for the sturdy blacksmith;—by her side, smartly dressed, are gamboling about the young Johnsons, while their father, in a respectable suit of black, marshals the somewhat unruly procession of maidens and youths chosen to receive the young Earl. He is now the steward, (agent is a name he wisely discards,) and a great man, but young girls and boys from sixteen to twenty have a trick of paying no attention to the wisdom of their elders, and he is sorely put to it to maintain order. Spring has planted her fair feet upon the daisied green, and a huge May-Pole has been erected, as in the olden time, an ox is roasted whole upon the lawn, tables are spread out under the shade of the great elms and sturdy oaks, foaming barrels of mighty ale, such as Guy of Warwick drank, ere he encountered the dun cow, are seen with taps ready in them,—the children are dancing round the May-Pole in wild glee,—and now a scout posted on a rising ground comes tearing towards them as though life and death depended on his speed,—the carriage is coming,—a cheer arises,—it has passed the gates, and is coming up the avenue. Johnson is full of nervous excitement, the maidens cease giggling and pinching and all those endearing little amusements, the young men try to look solemn and only succeed in causing a burst of laughter from the sly girls, some of whom draw down their faces in imitation. They are nervous, too—what if the great man should see their dresses in disorder, and he a young man, too; the elder matrons and the farmers stand nearest the house, all is expectation, he has come, the carriage has stopped at the very extremity of the line, a cheer, thrice repeated, peals through the air, as he descends from the carriage, and it is a heartfelt one, for this they know has been among themselves, and shared their hopes and fears. He is followed by Captain Williams, in the full uniform of an American Naval Officer; he is whiter headed than when we saw him last, but he looks able to wrestle any man upon the ground, a cheer bursts forth for him also, though none recognize in him aught but the brave sailor who had shown such sympathy at the grave of Mary Waters. They are received by the Curate, Mr. Johnson, the Lawyer and the Clerk. The young Earl waves his hand, and every door and window, in the spacious edifice is thrown open. With a kind word for every one, a merry joke with one fair maiden, and a laughing glance at another, a cheerful nod to the young men, and a hearty shake of the hand to the old, and as he decorously salutes each old matron on the cheek, he fairly rushes into the arms of his quondam aunt, who nearly goes into hysterics with joy, (which would have been awkward, as she is stout, and has laced some,) so she thinks better of it, and cries over him, which does just as well. Such a shout arises as makes the very welkin ring. He stops upon the top-most step, Capt. Williams and the others by his side. Every sound is hushed as he speaks. 'It is not outside, my friends, whom I hope I may never give reason to regret this day. It is not outside of my halls that I can give you thanks for my reception. There is no room in my house in which you are not freely welcome, this night, and to him who will not accept the call of the Earl de Montford, I will send poor Edward Barnett. Ten years from this day, if such of you as are spared, and I am one, will meet me here again, I will render to you an account of my stewardship, and then if you can raise again the cheers with which you have this day greeted me, poor Edward Barnett will be more than rewarded for his trials, and the Count de Montford the happiest of his race.' The glorious sun shone full upon his manly form and handsome features, and as cheer upon cheer arose, not one that looked upon his open truthful countenance, feared he would not redeem his promise, or disgrace the proud motto emblazoned on the banners that waved high above his head on the battlements;—Nulli Secundi,—Second to none.

---

## POSTSCRIPT.

### THE AUTHOR TO THE READER.

Gentle reader! if thou hast been interested in this tale of human hopes and fears—of stern retribution on the wicked, if thou hast shed a tear over the fate of the gentle and the good—thou wilt perhaps be anxious to know more of him, who at the close of our tale, we left—in life's young morning brightness—with wealth and power to aid in his path. Did he fall from his high estate, did prosperity dim the lustre of his promise, (and methinks some gentle maiden asks, how sped he in his love.) If thou hast borne with our tediousness, and hast not fainted—fear not, we will inflict upon thee yet more.

What all thy tediousness on me? (*Leonato*)

Yes, please your worship. (*Dogberry.*)

If thou hast been disgusted at the gloomy record, and kicked the book from thee,—Why then farewell, so end the hopes of poor

TOBY ACONITE,

E SCRIBE.

---

\*\*\* END OF THE PROJECT GUTENBERG EBOOK EDWARD  
BARNETT, A NEGLECTED CHILD OF SOUTH CAROLINA, WHO  
ROSE TO BE A PEER OF GREAT BRITAIN,—AND THE STORMY  
LIFE OF HIS GRANDFATHER, CAPTAIN WILLIAMS \*\*\*

Updated editions will replace the previous one—the old editions will be renamed.

Creating the works from print editions not protected by U.S. copyright law means that no one owns a United States copyright in these works, so the Foundation (and you!) can copy and distribute it in the United States without permission and without paying copyright royalties. Special rules, set forth in the General Terms of Use part of this license, apply to copying and distributing Project Gutenberg™ electronic works to protect the PROJECT GUTENBERG™ concept and trademark. Project Gutenberg is a registered trademark, and may not be used if you charge for an eBook, except by following the terms of the trademark license, including paying royalties for use of the Project Gutenberg trademark. If you do not charge anything for copies of this eBook, complying with the trademark license is very easy. You may use this eBook for nearly any purpose such as creation of derivative works, reports, performances and research. Project Gutenberg eBooks may be modified and printed and given away—you may do practically ANYTHING in the United States with eBooks not protected by U.S. copyright law. Redistribution is subject to the trademark license, especially commercial redistribution.

START: FULL LICENSE

# THE FULL PROJECT GUTENBERG™ LICENSE

PLEASE READ THIS BEFORE YOU DISTRIBUTE OR USE THIS WORK

To protect the Project Gutenberg™ mission of promoting the free distribution of electronic works, by using or distributing this work (or any other work associated in any way with the phrase “Project Gutenberg”), you agree to comply with all the terms of the Full Project Gutenberg License available with this file or online at [www.gutenberg.org/license](http://www.gutenberg.org/license).

## **Section 1. General Terms of Use and Redistributing Project Gutenberg electronic works**

1.A. By reading or using any part of this Project Gutenberg electronic work, you indicate that you have read, understand, agree to and accept all the terms of this license and intellectual property (trademark/copyright) agreement. If you do not agree to abide by all the terms of this agreement, you must cease using and return or destroy all copies of Project Gutenberg electronic works in your possession. If you paid a fee for obtaining a copy of or access to a Project Gutenberg electronic work and you do not agree to be bound by the terms of this agreement, you may obtain a refund from the person or entity to whom you paid the fee as set forth in paragraph 1.E.8.

1.B. “Project Gutenberg” is a registered trademark. It may only be used on or associated in any way with an electronic work by people who agree to be bound by the terms of this agreement. There are a few things that you can do with most Project Gutenberg electronic works even without complying with the full terms of this agreement. See paragraph 1.C below. There are a lot of things you can do with Project Gutenberg electronic works if you follow the terms of this agreement and help preserve free future access to Project Gutenberg electronic works. See paragraph 1.E below.

1.C. The Project Gutenberg Literary Archive Foundation (“the Foundation” or PGLAF), owns a compilation copyright in the collection of Project Gutenberg electronic works. Nearly all the individual works in the collection are in the public domain in the United States. If an individual work is unprotected by copyright law in the United States and you are



located in the United States, we do not claim a right to prevent you from copying, distributing, performing, displaying or creating derivative works based on the work as long as all references to Project Gutenberg are removed. Of course, we hope that you will support the Project Gutenberg mission of promoting free access to electronic works by freely sharing Project Gutenberg works in compliance with the terms of this agreement for keeping the Project Gutenberg name associated with the work. You can easily comply with the terms of this agreement by keeping this work in the same format with its attached full Project Gutenberg License when you share it without charge with others.

1.D. The copyright laws of the place where you are located also govern what you can do with this work. Copyright laws in most countries are in a constant state of change. If you are outside the United States, check the laws of your country in addition to the terms of this agreement before downloading, copying, displaying, performing, distributing or creating derivative works based on this work or any other Project Gutenberg work. The Foundation makes no representations concerning the copyright status of any work in any country other than the United States.

1.E. Unless you have removed all references to Project Gutenberg:

1.E.1. The following sentence, with active links to, or other immediate access to, the full Project Gutenberg License must appear prominently whenever any copy of a Project Gutenberg work (any work on which the phrase “Project Gutenberg” appears, or with which the phrase “Project Gutenberg” is associated) is accessed, displayed, performed, viewed, copied or distributed:

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg™ License included with this eBook or online at [www.gutenberg.org](http://www.gutenberg.org). If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

1.E.2. If an individual Project Gutenberg electronic work is derived from texts not protected by U.S. copyright law (does not contain a notice indicating that it is posted with permission of the copyright holder), the work can be copied and distributed to anyone in the United States without paying any fees or charges. If you are redistributing or providing access to a work with the phrase “Project Gutenberg” associated with or appearing on the work, you must comply either with the requirements of paragraphs 1.E.1 through 1.E.7 or obtain permission for the use of the work and the Project Gutenberg trademark as set forth in paragraphs 1.E.8 or 1.E.9.

1.E.3. If an individual Project Gutenberg electronic work is posted with the permission of the copyright holder, your use and distribution must comply with both paragraphs 1.E.1 through 1.E.7 and any additional terms imposed by the copyright holder. Additional terms will be linked to the Project Gutenberg License for all works posted with the permission of the copyright holder found at the beginning of this work.

1.E.4. Do not unlink or detach or remove the full Project Gutenberg License terms from this work, or any files containing a part of this work or any other work associated with Project Gutenberg.

1.E.5. Do not copy, display, perform, distribute or redistribute this electronic work, or any part of this electronic work, without prominently displaying the sentence set forth in paragraph 1.E.1 with active links or immediate access to the full terms of the Project Gutenberg License.

1.E.6. You may convert to and distribute this work in any binary, compressed, marked up, nonproprietary or proprietary form, including any word processing or hypertext form. However, if you provide access to or distribute copies of a Project Gutenberg work in a format other than “Plain Vanilla ASCII” or other format used in the official version posted on the official Project Gutenberg website ([www.gutenberg.org](http://www.gutenberg.org)), you must, at no additional cost, fee or expense to the user, provide a copy, a means of exporting a copy, or a means of obtaining a copy upon request, of the work in its original “Plain Vanilla ASCII” or other form. Any alternate format must include the full Project Gutenberg License as specified in paragraph 1.E.1.

1.E.7. Do not charge a fee for access to, viewing, displaying, performing, copying or distributing any Project Gutenberg works unless you comply with paragraph 1.E.8 or 1.E.9.

1.E.8. You may charge a reasonable fee for copies of or providing access to or distributing Project Gutenberg electronic works provided that:

- You pay a royalty fee of 20% of the gross profits you derive from the use of Project Gutenberg works calculated using the method you already use to calculate your applicable taxes. The fee is owed to the owner of the Project Gutenberg trademark, but he has agreed to donate royalties under this paragraph to the Project Gutenberg Literary Archive Foundation. Royalty payments must be paid within 60 days following each date on which you prepare (or are legally required to prepare) your periodic tax returns. Royalty payments should be clearly marked as such and sent to the Project Gutenberg Literary Archive Foundation at the address specified in Section 4, "Information about donations to the Project Gutenberg Literary Archive Foundation."
- You provide a full refund of any money paid by a user who notifies you in writing (or by e-mail) within 30 days of receipt that s/he does not agree to the terms of the full Project Gutenberg™ License. You must require such a user to return or destroy all copies of the works possessed in a physical medium and discontinue all use of and all access to other copies of Project Gutenberg™ works.
- You provide, in accordance with paragraph 1.F.3, a full refund of any money paid for a work or a replacement copy, if a defect in the electronic work is discovered and reported to you within 90 days of receipt of the work.
- You comply with all other terms of this agreement for free distribution of Project Gutenberg™ works.

1.E.9. If you wish to charge a fee or distribute a Project Gutenberg™ electronic work or group of works on different terms than are set forth in this agreement, you must obtain permission in writing from the Project Gutenberg Literary Archive Foundation, the manager of the Project

Gutenberg™ trademark. Contact the Foundation as set forth in Section 3 below.

## 1.F.

1.F.1. Project Gutenberg volunteers and employees expend considerable effort to identify, do copyright research on, transcribe and proofread works not protected by U.S. copyright law in creating the Project Gutenberg™ collection. Despite these efforts, Project Gutenberg™ electronic works, and the medium on which they may be stored, may contain “Defects,” such as, but not limited to, incomplete, inaccurate or corrupt data, transcription errors, a copyright or other intellectual property infringement, a defective or damaged disk or other medium, a computer virus, or computer codes that damage or cannot be read by your equipment.

1.F.2. LIMITED WARRANTY, DISCLAIMER OF DAMAGES - Except for the “Right of Replacement or Refund” described in paragraph 1.F.3, the Project Gutenberg Literary Archive Foundation, the owner of the Project Gutenberg™ trademark, and any other party distributing a Project Gutenberg™ electronic work under this agreement, disclaim all liability to you for damages, costs and expenses, including legal fees. YOU AGREE THAT YOU HAVE NO REMEDIES FOR NEGLIGENCE, STRICT LIABILITY, BREACH OF WARRANTY OR BREACH OF CONTRACT EXCEPT THOSE PROVIDED IN PARAGRAPH 1.F.3. YOU AGREE THAT THE FOUNDATION, THE TRADEMARK OWNER, AND ANY DISTRIBUTOR UNDER THIS AGREEMENT WILL NOT BE LIABLE TO YOU FOR ACTUAL, DIRECT, INDIRECT, CONSEQUENTIAL, PUNITIVE OR INCIDENTAL DAMAGES EVEN IF YOU GIVE NOTICE OF THE POSSIBILITY OF SUCH DAMAGE.

1.F.3. LIMITED RIGHT OF REPLACEMENT OR REFUND - If you discover a defect in this electronic work within 90 days of receiving it, you can receive a refund of the money (if any) you paid for it by sending a written explanation to the person you received the work from. If you received the work on a physical medium, you must return the medium with your written explanation. The person or entity that provided you with the defective work may elect to provide a replacement copy in lieu of a refund. If you received the work electronically, the person or entity providing it to

you may choose to give you a second opportunity to receive the work electronically in lieu of a refund. If the second copy is also defective, you may demand a refund in writing without further opportunities to fix the problem.

1.F.4. Except for the limited right of replacement or refund set forth in paragraph 1.F.3, this work is provided to you 'AS-IS', WITH NO OTHER WARRANTIES OF ANY KIND, EXPRESS OR IMPLIED, INCLUDING BUT NOT LIMITED TO WARRANTIES OF MERCHANTABILITY OR FITNESS FOR ANY PURPOSE.

1.F.5. Some states do not allow disclaimers of certain implied warranties or the exclusion or limitation of certain types of damages. If any disclaimer or limitation set forth in this agreement violates the law of the state applicable to this agreement, the agreement shall be interpreted to make the maximum disclaimer or limitation permitted by the applicable state law. The invalidity or unenforceability of any provision of this agreement shall not void the remaining provisions.

1.F.6. INDEMNITY - You agree to indemnify and hold the Foundation, the trademark owner, any agent or employee of the Foundation, anyone providing copies of Project Gutenberg™ electronic works in accordance with this agreement, and any volunteers associated with the production, promotion and distribution of Project Gutenberg™ electronic works, harmless from all liability, costs and expenses, including legal fees, that arise directly or indirectly from any of the following which you do or cause to occur: (a) distribution of this or any Project Gutenberg work, (b) alteration, modification, or additions or deletions to any Project Gutenberg work, and (c) any Defect you cause.

## **Section 2. Information about the Mission of Project Gutenberg**

Project Gutenberg is synonymous with the free distribution of electronic works in formats readable by the widest variety of computers including obsolete, old, middle-aged and new computers. It exists because of the

efforts of hundreds of volunteers and donations from people in all walks of life.

Volunteers and financial support to provide volunteers with the assistance they need are critical to reaching Project Gutenberg's goals and ensuring that the Project Gutenberg collection will remain freely available for generations to come. In 2001, the Project Gutenberg Literary Archive Foundation was created to provide a secure and permanent future for Project Gutenberg and future generations. To learn more about the Project Gutenberg Literary Archive Foundation and how your efforts and donations can help, see Sections 3 and 4 and the Foundation information page at [www.gutenberg.org](http://www.gutenberg.org).

### **Section 3. Information about the Project Gutenberg Literary Archive Foundation**

The Project Gutenberg Literary Archive Foundation is a non-profit 501(c)(3) educational corporation organized under the laws of the state of Mississippi and granted tax exempt status by the Internal Revenue Service. The Foundation's EIN or federal tax identification number is 64-6221541. Contributions to the Project Gutenberg Literary Archive Foundation are tax deductible to the full extent permitted by U.S. federal laws and your state's laws.

The Foundation's business office is located at 41 Watchung Plaza #516, Montclair NJ 07042, USA, +1 (862) 621-9288. Email contact links and up to date contact information can be found at the Foundation's website and official page at [www.gutenberg.org/contact](http://www.gutenberg.org/contact)

### **Section 4. Information about Donations to the Project Gutenberg Literary Archive Foundation**

Project Gutenberg™ depends upon and cannot survive without widespread public support and donations to carry out its mission of increasing the number of public domain and licensed works that can be freely distributed in machine-readable form accessible by the widest array of equipment

including outdated equipment. Many small donations (\$1 to \$5,000) are particularly important to maintaining tax exempt status with the IRS.

The Foundation is committed to complying with the laws regulating charities and charitable donations in all 50 states of the United States. Compliance requirements are not uniform and it takes a considerable effort, much paperwork and many fees to meet and keep up with these requirements. We do not solicit donations in locations where we have not received written confirmation of compliance. To SEND DONATIONS or determine the status of compliance for any particular state visit [www.gutenberg.org/donate](http://www.gutenberg.org/donate).

While we cannot and do not solicit contributions from states where we have not met the solicitation requirements, we know of no prohibition against accepting unsolicited donations from donors in such states who approach us with offers to donate.

International donations are gratefully accepted, but we cannot make any statements concerning tax treatment of donations received from outside the United States. U.S. laws alone swamp our small staff.

Please check the Project Gutenberg web pages for current donation methods and addresses. Donations are accepted in a number of other ways including checks, online payments and credit card donations. To donate, please visit: [www.gutenberg.org/donate](http://www.gutenberg.org/donate).

## **Section 5. General Information About Project Gutenberg electronic works**

Professor Michael S. Hart was the originator of the Project Gutenberg concept of a library of electronic works that could be freely shared with anyone. For forty years, he produced and distributed Project Gutenberg eBooks with only a loose network of volunteer support.

Project Gutenberg eBooks are often created from several printed editions, all of which are confirmed as not protected by copyright in the U.S. unless a

copyright notice is included. Thus, we do not necessarily keep eBooks in compliance with any particular paper edition.

Most people start at our website which has the main PG search facility:  
[www.gutenberg.org](http://www.gutenberg.org).

This website includes information about Project Gutenberg, including how to make donations to the Project Gutenberg Literary Archive Foundation, how to help produce our new eBooks, and how to subscribe to our email newsletter to hear about new eBooks.